

GUATEMALA SUPPLEMENTAL FIELD OFFICE MANUAL FOR PERSONNEL AND OPERATIONS

January 2020



PARTNERS *of the* AMERICAS
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1. Introduction

1.1 Welcome to Partners

Welcome to Partners of the Americas!

The field office manual has been prepared specifically for Partners of the Americas employees in Guatemala. It will introduce the organization and information on the rights and obligations the employee has towards the Guatemala Field Office and, at the same time, about the rights and obligations that the Guatemala Field Office has towards the employee. This Manual is therefore a basic information tool for employees working in the Guatemala Field Office.

In this book we try to explain the important topics related to financial, personnel and operational management. The Guatemala Field Office expects that all employees understand and implement all the policies and procedures found within this manual. It is the responsibility of each employee to know the policies and procedures, or when necessary, request clarification. All employees will be required to sign a [certification form](#) confirming that they have reviewed all the policies and that they will adhere to the standards set forth within this document.

When the Guatemala Field Office deems it appropriate to modify the policies and procedures, it will update the necessary parameters which will subsequently be disbursed to each employee in a timely manner. We ask you to contact your immediate superior or the Administrative and Financial Management if you have any doubt about your position or your working relationship with the Partners Guatemala, as many times as necessary.

You are the lifeblood of Partners of the Americas and, as such, we want you to find an interesting and rewarding experience in your work environment.

With all due respect, I wish you every success.

John McPhail, President & CEO

1.2 Objective and Scope

The purpose of this manual is to help its users to work in accordance with the rules and philosophy of Partners of the Americas, adapted to the Labor Code in Guatemala, thus becoming a consultation tool with unified criteria and provide a general framework and standardized set of policies and procedures for financial, personnel and operational management in Partners of the Americas' Guatemala Field Office, herein after referred to as **"Partners Guatemala"**. The supplemental manual addresses country specific laws, regulations and policies in accordance with Guatemala law.

The information presented here contains the main standards of conduct Partners Guatemala and the most common legal regulations in the workplace.

Partners Guatemala is expected to comply with all the policies and procedures set forth in this manual and are encouraged to seek clarifications if questions arise. Partners Guatemala, (including sub-offices), must maintain a printed copy of the manual for reference.

1.3 Management Control – Roles and Responsibilities in Headquarters

The Chief Financial Officer (CFO) is the authority on the Partners Guatemala supplemental manual, or in absence of the Senior Director, an individual designated by the President and CEO. Partners Guatemala is encouraged to provide input, suggestions and corrections, but may not alter or change any part of this manual.

This manual will be reviewed and updated annually (if applicable) to reflect current circumstances as well as new policies and procedures. Partners Guatemala will be notified of updates by e-mail.

1.4 Implementation Control – Roles and Responsibilities in Guatemala

This manual is for the use and knowledge of all employees without exception. The contents of this manual as well as its updates will be notified to each employee for its understanding and its application. It is the responsibility of all employees to know, understand and apply the contents of this manual in its entirety.

It is not permitted to reproduce the manual for reasons as its consultation is exclusively reserved for the employees of Partners Guatemala. In the event that the employee has suggestions and recommendations related to the manual, these remarks must be communicated in writing to the immediate supervisor so that they can forward it to management.

Enforcement of this supplemental field office manual will be the responsibility of the positions below.

- Field Office (FO) Director (Project Director, Chief of Party, etc.) – This individual is the lead field office operations director in country. They are responsible for overall project/program management and the operations of the field on a day-to-day basis. This individual is also responsible for approval of all the finance operations including payments authorizations and internal controls for the in-country field office.
- Field Office (FO) Finance Manager (Admin & Finance Assistant/Manager) – This individual is the person responsible for finance operations, basic data entry, payment processing and entry, and reconciling accounts.

2. Internal Controls

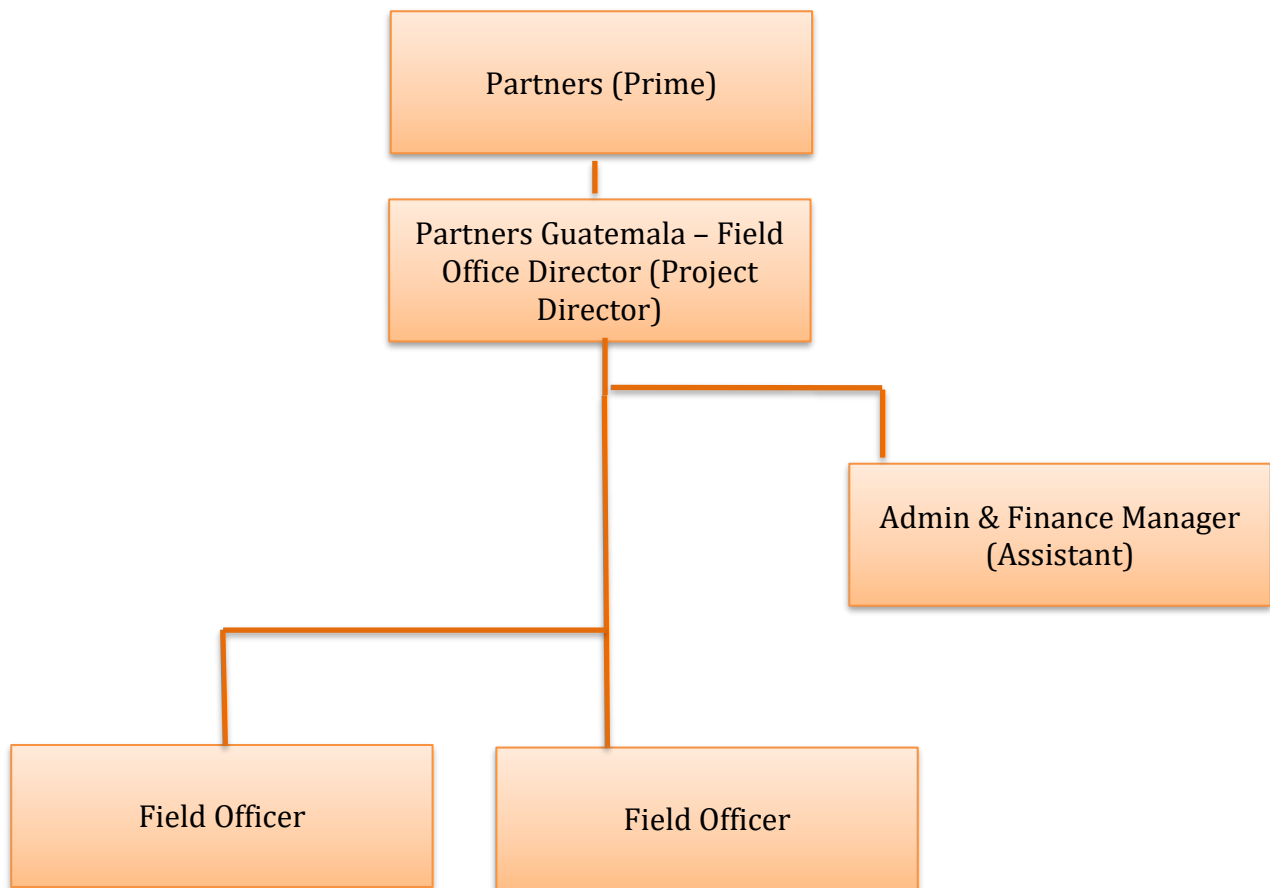
2.1 Purpose and Scope

The purpose of Internal Controls is to provide reasonable assurance that the following objectives are being accomplished:

- Reliability and integrity of information
- Compliance with policies, plans, procedures, laws and regulations
- Safeguarding of assets in Partners Guatemala
- Economical and efficient use of resources
- Accomplishment of established objectives and goals for operations and programs

2.2 Approval Authority

The flowchart below outlines the approval authority matrix at Partners Guatemala. The FO Finance Manager, supported by the FO Director, has responsibility for enforcing approval authority. Partners HQ has approval over the FO Director and must approve his/her payments, etc. In accordance with the procurement policy, all transactions valued at USD \$2,500 will automatically need to be approved by Partners HQ.



2.2.1 Responsibilities of Approval and Review Authorities

It is critical that approval authority holders not only understand what their authority levels are, but also what their responsibilities are in using their authority. The responsibilities for both approval authority holders and financial review are outlined below.

By approving an expenditure, commitment or payment, the signer is confirming that:

1. The expenditure is necessary and appropriate;
2. The item is not currently in stock or available;
3. The technical specifications are correct and adequately detailed;
4. The required forms are complete;
5. Funds are available within the budget;
6. The expenditure is in compliance with Partners HQ's policies and procedures.

Financial review is a compliance check and not an approval authority. The primary purpose of financial review is to ensure that all financial and compliance aspects of the commitment are considered. The FO Finance Manager, when signing off, is confirming that:

1. The expense has been authorized by the appropriate authorizer;
2. The expenditure is within budget guidelines;
3. The expenditure is in compliance with Partners HQ and donor policies;
4. The expense has been coded correctly;
5. The calculations are correct;
6. The required supporting documentation is in order and adequately explains the transaction; and
7. All payments, whether by check, wire transfer, etc. are being paid to the party which appears on the procurement records and/or other approval documentation. Checks or transfers may not be made out to third parties or any Partners' employees (either Partners HQ or Partners Guatemala) to be cashed on behalf of the vendor. Any exceptions must be approved in writing by the Chief Financial Officer (CFO) or President & CEO.
8. All expenses are recorded at full cost and not net of taxes, etc.

An original signature on an original document is the required method of documenting an approval or review. Upward approval is required for all transactions. Under no circumstances may an originator approve their own expenses, including the FO Director.

When the authority holder is not located at Partners Guatemala or where an approval is required due to a temporary absence (travel, vacation, sick, etc.), the next level of authority in that office should be sought for approvals that the absent party would have normally made.

When the authority holder is permanently located outside of the office where an approval is required or is the only one authorized for a particular approval and they are out of office, the document to be signed should be printed, signed and scanned. The scanned copy should be sent back to the office requiring the approval. The scanned document must then be printed and attached.

3. Monthly Reconciliation of Accounts

3.1 Reconciliation of Assets, Liabilities & Cash Accounts

All assets and liabilities accounts (i.e. cash, accounts receivable, accounts payable and other balance sheet accounts) must be properly reconciled on a monthly basis. Evidence of the reconciliation should be maintained in Partners Guatemala and be sent monthly to Partners HQ. This evidence should include all supporting schedules prepared by the FO Finance Manager and approved by the FO Director prior to the submission of the reports to Partners HQ, or presentation to the auditors during the audit process.

All financial reports for both Partners Guatemala and all sub-awardees must be submitted to Partners HQ by the 7th of the following month. If the 7th of the month falls on a holiday or weekend, the submission deadline is the last business day prior to the 7th. Compliance with this timeline is critical to ensure expenditures are recorded in the correct month. If there are any delays or issues with meeting the deadline, field staff must immediately notify Partners HQ of the delay and provide an explanation for the nature of the delay. Partners will provide a template for monthly financial reporting. A financial report must be received each month for all bank accounts held by Partners Guatemala which includes all the following:

- A) Signed bank reconciliation (template provided by Partners HQ, see [Annex C](#))

- B) Copy of the bank statement(s)
- C) Expense report indicating all expenditures in the month (on the template provided by Partners, see [Annex C](#))
- D) Copies of all documentation to support the expenditures listed on the expense report
- E) If reporting is done in local currency, then a copy of the monthly average exchange rates must be submitted from the Bank of Guatemala.

Partners may withhold a cash flow advance request if Partners Guatemala fails to provide timely reporting of expenditures in accordance with the above guidelines.

3.2 System of Award Management (SAM) Check Via Visual Compliance

Partners HQ, in accordance with Federal regulation, requires that Partners Guatemala run a Visual Compliance check on all recipients (individuals and entities) who are receiving any funds. The website for Visual Compliance is: <https://www.visualcompliance.com/> and the necessary login information will be provided by Partners HQ. Proof that the Visual Compliance check was done must be retained and kept along with proof of the payment, **prior to the recipient receiving any funds**. The Visual Compliance check must be run at a minimum, once per calendar year (January – December) on the first payment of the year in order to be compliant.

Each month, Partners HQ will request copies of selected Visual Compliance checks for inspection and to ensure compliance. The transactions will be selected at random.

4. Financial Records, Audits & Record Retention

4.1 Record Retention and Accounting

Partners Guatemala must maintain financial records, supporting documents, statistical records and all other records, to support performance of, and charges to, the project. Such

records must comply with accounting principles generally accepted in the U.S. and Guatemala.

Partners Guatemala records and any subrecipient records that pertain to the project must be retained in country for a minimum period of three years from the submission date of the final expenditure report. After three years of record retention in country, Partners Guatemala will need to work with Partners HQ to transport the necessary documents to the international office.

4.2 Filing & Records

The FO Director is responsible for establishing guidelines and procedures for filing and tracking. In addition, they are responsible for maintaining the general filing system or appointing another member of the management team to assist in this process. At a minimum all financial records, supporting documents, statistical records and all other records, to support performance of, and charges to, the project must be stored in a fire-proof filing cabinet with a lock. Access to the files should be restricted to the FO Director and FO Finance Manager.

4.3 Audits

Partners Guatemala must have an annual audit conducted in accordance with the "Guidelines for Financial Audits Contracted by Foreign Recipients" https://www.usaid.gov/sites/default/files/documents/1868/591maa_new.pdf, for any fiscal year (January – December) in which Partners Guatemala expends a combined total of USD \$750,000 or more in all Federal awards. Any donor can make a request and has the right to conduct an audit any time during the life of a project/program that the donor funds. Any annual audit must be conducted in coordination with Partners HQ. The terms of reference and the selection of the audit firm must be approved by the CFO at Partners HQ.

Partners HQ retains the right to conduct a financial review, require an audit, or otherwise ensure adequate accountability of organizations expending federal funds, regardless of the audit requirements above.

4.4 Financial Reporting

The FO Finance Manager will provide the FO Director with the below reports monthly:

1. Balance Sheet
2. Income Statement
3. Report on Budget versus Actuals

The FO Director is responsible for the review and approval of the above financial statements. Copies of the approved financial statements must be submitted to Partners HQ quarterly.

5. Inventory Control

5.1 Equipment vs. Supplies

- **Equipment** means tangible personal property (including information technology systems) having a useful life of more than one year and a per-unit acquisition cost which equals or exceeds USD \$5,000.
- **Supplies** means all tangible personal property other than those described in equipment (above). A computing device (e.g. computers, etc.) is a supply if the acquisition cost is less than USD \$5,000, regardless of the length of its useful life.

5.2 Inventory Control Requirements

A physical inventory of Partners Guatemala must be taken, and the results reconciled with Partners Guatemala's records at least once every year in January. The monetary value threshold for accounting of inventory items (e.g. furniture, equipment and fixtures) in Guatemala is USD \$500 per item.

The document "Master Equipment & Supply Listing", found in [Annex A](#) must be submitted to Partners HQ annually no later than January 31st. The FO Finance Manager must certify and reconcile to the books the "Master Equipment & Supply Listing" and the FO Director must review and approve.

5.3 Use of Equipment

Partners Guatemala strives to ensure that its employees have modern and adequate equipment to make their work easier and more efficient.

Responsibilities for the proper use of equipment:

- Handle the assigned equipment with care;
- Monitor the optimal operation of assigned equipment;
- If for any reason equipment from another source is to be used, the employee must ensure that it contains no viruses in order to preserve information on the organization's computer network;
- Report any fault or loss of equipment immediately; and
- Facilitate equipment access to technical and maintenance services.

Partners Guatemala does not authorize the following activities:

- Installation of programs that do not have their corresponding license;
- Use of copied programs that are not for the exclusive use of Partners Guatemala;
- Installation and use of games, movies, etc.;
- Use of programs that may affect the operation of Partners Guatemala network;
- Introduction of elements that damage the equipment;
- Block operating systems without notice;
- Create passwords without sharing them with the systems manager and the Administration Manager, preventing access to working documents;
- Delete, without warning the information necessary for the execution of programs;
- Any conduct with bad faith or destructive intent that interferes with the good work of other employees.

Use of Printing and Copying Equipment

The use of printers and photocopying machines is exclusively reserved for work related to Partners Guatemala projects.

Use of the Internet and Chat Software

Use of the internet should be for work purposes only. Software programs for chatting within the organization such as Skype, WhatsApp, etc. is permitted for office use.

It is strictly forbidden to use chat software such as Facebook, Instagram, or other social media sites, unless for explicit Partners Guatemala work. Access to adult and similar web sites is strictly prohibited. Note that Partners Guatemala reserves the right to monitor all company equipment, emails, etc. to ensure its proper use.

Use of Audio Equipment

The use of radio, tape recorder or CDs is not prohibited. However, employees must refrain from doing so in places where their use may interfere with the normal development of their employees' work. In any case, the volume of the music must be of low intensity.

6. Cash Management

6.1 Petty Cash

This is an imprest system of cash control which is used for day-to-day expenditure of items less than USD \$25.00 or its Guatemalan Quetzal equivocal. The fixed float amount of petty cash is USD \$300.00 or its Guatemalan Quetzal equivocal. Unless otherwise delegated, the FO Finance Manager is responsible for the petty cash system, including disbursement and reconciliation.

A petty cash log is to be maintained by the FO Finance Manager. The date and amount of petty cash taken must be recorded on the petty cash log. The FO Finance Manager will complete the details of the expenditure and track all receipts associated with petty cash. At the end of each month, a petty cash count should be completed to confirm the balance; a template is provided in [Annex B](#).

When the balance of the petty cash reaches USD \$50.00, the FO Finance Manager will reconcile the petty cash, ensuring that all receipts and vouchers are accounted for, and replace funds by drawing a check made out to petty cash. When petty cash is reimbursed by check, the transaction is recorded in the accounting software allocating each item to the appropriate line item. The FO Director is responsible for review and approval of the petty cash reconciliation. The FO Director is also responsible for surprise cash count to be done no less than quarterly and at the end of fiscal year closure.

6.2 Exchange Rates

To report all revenues and expenditures, Partners Guatemala uses a monthly average exchange rate. Proof of exchange rate must be submitted monthly to Partners HQ with the monthly field expenditure reports.

6.3 Bank Accounts

Partners Guatemala is authorized to set up one bank account to receive project funds dominated in Guatemalan Quetzals. If any additional bank accounts are required, the FO Director must request permission and approval in writing form to the CFO. The goal is to keep Partners Guatemala's bank accounts to the minimum number needed.

The bank accounts should only be used for the purpose of the project and in the name of Partners Guatemala. Transactions related to other projects will not be permitted. The bank account should have a HQ staff member and a minimum of two signatories, the FO Finance Manager and the FO Director. The FO Director will approve all the payments and sign all checks. For payments and checks exceeding USD \$750.00, the FO Finance Manager must sign as a second signatory.

Information on any new bank account must be sent to Partners HQ and provide the following information: the name on the account, account number, bank name, type of account, list of signatories on the account and current balance. Changes to the signatories on the account must be approved by the FO Director and notification should be provided to Partners HQ.

Upon hiring or termination of employee with signatory power, the bank account signatories must be updated accordingly.

6.3.1 Monthly Bank Account Reconciliations

The monthly bank statement will be used to reconcile the account each month. Each bank account should have a separate general ledger account, differentiated by sub-code.

At the end of each month, Partners Guatemala will receive a monthly bank statement from the bank. Note an official statement must be obtained from the bank for each account, regardless of whether any transactions took place during the month. If the reconciliation is done in Guatemala Quetzals, then a proof of exchange rate to USD must be provided.

The purpose of the monthly bank reconciliation is to reconcile the balance shown on the bank statement with the ending balance on the general ledger journal. Each transaction (check, wire, advance, etc.) must be recorded separately. A lump sum total will not be permissible. All bank reconciliations must be done on the field report expenditure template and reconciliation, found in [Annex C](#).

The reconciliation tab should not be used to restate the monthly bank activity but should be used to show any outstanding transactions that occurred during the month but have not yet been reflected on the bank statement. The prior month's bank reconciliation must be checked for any items that remain outstanding. Transactions that remain uncleared from previous months should be promptly researched with the bank or the payee. The tab for financial field report of general ledger activities should show all financial transactions occurring in the month.

Once the full bank reconciliation is completed, the FO Finance Manager will be responsible for submitting to Partners HQ the following: bank reconciliation, copy of the bank statement, full financial field report (general ledger report), and copies of all receipts by the 7th of each month for the prior month's expenditures as indicated in [3.1 Reconciliation of Assets, Liabilities & Cash Accounts](#).

6.4 Cash Flow Advances

Partners Guatemala may request up to 30 days of cash needs based on the monthly cash flow projection. Cash may be drawn once a month on the first of the month. A cash flow request must be used for all cash requests to Partners HQ, the template is provided in [Annex D](#). Funding requests should be sent to Partners HQ by the 7th of the month to be processed on mid-month wire and check release cycle. Partners Guatemala should plan enough lead time when requesting cash to take into account the wire processing time by the bank and Partners HQ. Cash flow advances must be cleared monthly through submission of a financial report that is submitted to Partners HQ in accordance with [3.1 Reconciliation of Assets, Liabilities & Cash Accounts](#). Often the cash flow advances will not clear entirely each month, and therefore any leftover funds should be taken into consideration as cash on hand when determining the next month's cash flow request. If financial reports are not submitted on time, additional advances to Partners Guatemala may be held at the discretion of the CFO.

6.4.1 Excess Cash on Hand

Excess funds are defined as cash in excess of 60 days for Guatemala operations. As having an excess of funds in the Guatemala can pose a risk, Partners Guatemala should consult with Partners HQ to determine the best course of action to rectify the situation.

6.5 General Cash Handling Policies

Below are the general guidelines that Partners Guatemala is required to meet in order to ensure compliance and safeguarding of cash.

6.5.1 Use of Safes

Partners Guatemala is required to use a fireproof safe for the storage of office cash. Access to the safe should be strictly controlled. A set of keys should be kept by the FO Director only.

6.5.2 Minimizing Cash Transactions

Given the inherent risks associated with cash handling, Partners Guatemala must always use other means of payment whenever possible, such as a bank debit card, checks or wire transfers and avoid use of petty cash and advances. The maximum cash payment that is

permissible is USD \$250. Transactions over this threshold must be made with another payment method such as a bank debit card, check or wire transfer.

6.5.3 Evidence of Receipt by Payee

To prevent duplicate payments or claims of discrepancies, all cash payments must be documented by evidence of receipt by the payee. This means that the recipient of the payment must sign that the cash was received in total at the time of payment. A numbered receipt should be prepared in duplicate indicating the amount and date and should be signed by the recipient. One copy should be given to the payee and one copy should be retained and included with the voucher documentation.

6.5.4 Periodic Cash Counts – Petty Cash Certification

Cash balances should be physically counted periodically to ensure that cash journal/receipts balances match the actual cash on hand. These cash counts should be done in accordance with [Section 6.1 Petty Cash](#). Petty cash certifications should conform to the following general guidelines:

- Cash counts should be done discreetly, out of general view and should be undisturbed.
- Counts should be performed by a minimum of two people. One should serve as the counter and the other as a witness of the count. A template of the Petty Cash Certification can be found in [Annex E](#) which must be completed each time.
- Cash counts should be performed each month and at random. Note that Partners HQ reserves the right to request a Petty Cash Certification at any time.
- Any overages or underages must be recorded in the cash journal at month end in order to reconcile with the final count. Discrepancies may not be held over to future periods. The cause for any overages or underages must be further researched and appropriate action taken to ensure that it does not happen in the future. Partners HQ must be notified of any discrepancies.

7. Partners Guatemala General Policies

7.1 Anti-Corruption Policy

Partners Guatemala and its affiliates must have a zero-tolerance against bribery and corruption. The objective of the anti-corruption policy is to ensure that appropriate anti-corruption and bribery procedures are in place to avoid any violations of relevant laws and regulations. This policy applies to all officers, directors, shareholders, employees and appointed third party representatives. For a copy of the full policy, please reference the Partners General Field Office Manual.

7.2 Anti-Discrimination

Partners Guatemala defines discrimination as any distinction, exclusion or preference based on race, color, sex, religion, political opinion, disability, sexual orientation, economic situation, national ancestry or social origin, that results in destroying or altering the equality of chances or treatment in employments or occupation. The Guatemala Labor Code provides that all workers are equal before the law and benefit from the same protection and guarantees.

Partners Guatemala promotes diversity and equal opportunity in the workplace in accordance with all applicable local laws. If you believe that you have been the victim of any type of discrimination or are aware of such conduct, you must promptly notify your supervisor, FO Director or Partners HQ. An employee who has made a report of questionable conduct and who subsequently believes he or she has been subjected to retaliation of any kind by any Partners Guatemala or Partners HQ employee is directed to immediately report it to the FO Director or the appropriate party at Partners HQ. Anyone found to be engaging in any type of unlawful discrimination will be subject to disciplinary action, up to and including termination of employment.

All Partners Guatemala employees have the responsibility to maintain honesty, integrity and efficiency, and to reassure their conduct and commitment to the highest ethical standards. It is important to emphasize that all employees are important. The development and success of Partners Guatemala depends on the interest and creativity of its employees in the work.

They must maintain good relationships and treat others kindly, creating a harmonious work environment and excellent employee relationships including equality of opportunity without discrimination or harassment.

7.3 Anti-Sexual Harassment

The Partners Guatemala prohibits all forms of sexual harassment. Sexual harassment refers to any physical behavior, verbal or not, of sexual nature, affecting women and men's dignity, and deemed inappropriate, unreasonable and offensive for the worker.

The evidence of sexual harassment in the workplace is established if the workers perceive that their reaction to such behavior:

1. Is a condition to keep the job and/or;
2. Will have an impact on decisions concerning their job and/or;
3. Will have an impact on their performance.

Sexual harassment can also come from a behavior that creates a hostile, threatening and humiliating environment. Partners Guatemala is committed to providing a work environment free of any form of verbal or physical discrimination and abuse-based race, color, sex, religion, political opinion, disability, sexual orientation, economic situation, national ancestry or social origin, or for any other purpose. It is Partners Guatemala policy to prohibit harassment between employees. The purpose of this philosophy is not to regulate the moral behavior of employees, but rather to ensure professional behavior at work. Employee harassment refers to the use of epithets, nicknames, threats, derogatory comments, offensive jokes, sexual insinuations, requests for sexual favors, and any other type of verbal or similar physical contact. Any employee who considers that he is subject to discrimination and harassment will have to report this situation to his/her immediate supervisor, FO Director or Partners HQ so that the corresponding investigation can be carried out and that the measures that the case deserves to be taken.

7.4 Anti-Workplace Violence and Bullying

To protect the welfare of our staff from instances of violence in the workplace, Partners Guatemala has implemented a violence prevention policy. Partners Guatemala strongly believes that all employees should be treated with dignity and respect and that each employee is responsible for her or his actions and consequences. Thus, acts of violence and threats of violence will not be tolerated. The carrying of weapons including, but not limited to, firearms and knives on company or client premises is strictly prohibited. Additionally, Partners Guatemala does not allow workplace bullying. Partners Guatemala defines bullying as “repeated inappropriate behavior, either direct or indirect, whether verbal, physical or otherwise, conducted by one or more persons against another or others, at the place of work and/or in the course of employment.” Such behavior violates the company Code of Ethics, which clearly states that all employees will be treated with dignity and respect. Bullying may be intentional or unintentional. However, it must be noted that where an allegation of bullying is made, the intention of the alleged bully is irrelevant and will not be given consideration when meting out discipline. As in sexual harassment, it is the effect of the behavior upon the individual that is important. Partners Guatemala considers the following types of behavior examples of bullying:

- Verbal bullying: Slandering, ridiculing or maligning a person or his/her family; persistent name calling that is hurtful, insulting or humiliating; using a person as the butt of jokes; abusive and offensive remarks.
- Physical bullying: Pushing, shoving, kicking, poking, tripping, assault or threat of physical assault; damage to a person’s work area or property.
- Gesture bullying: Nonverbal threatening gestures or glances that convey threatening messages.
- Exclusion: Socially or physically excluding or disregarding a person in work-related activities.

Any violation of this policy may lead to disciplinary action, up to, and including justified termination. Additionally, employees have a “duty to warn” their supervisors, FO Director or

Partners HQ of any suspicious workplace activity, situations or incidents that appear problematic. This includes, but is not limited to, threats or acts of violence, aggressive behavior, and threatening comments or remarks. While Partners Guatemala cannot guarantee the safety of employees, all reports will be promptly and thoroughly investigated.

7.4.1 Harassment/Bullying Complaint Procedure

If you believe you have been subjected to prohibited harassment or you are aware of any such conduct, the incident must be reported immediately. We ask that any person who has witnessed or been the subject of harassment contact our independent Human Resource (HR) Consultant, Foster Thomas. A confidential hotline at +1 (202) 247-9610 has been set up for you to report your concern via voicemail message. The voicemail is monitored by an HR Consultant from Foster Thomas who will review all messages and promptly contact you to discuss your concern and to gain a full understanding of the situation. The HR Consultant will then provide an overview of the situation to the Ethics Committee of the Board. The Ethics Committee will then review the case and make a determination of whether the case should be referred to the President (or, in appropriate circumstances, to another member of Senior Management or the FO Director) for further action. If the complainant provides no identifying information in the message, Foster Thomas will relay the complaint directly to the Ethics Committee for review.

Alternatively, or in addition to the confidential hotline, you may report harassment to your supervisor, FO Director or Partners HQ, as you feel comfortable. Such complaints must be recorded in writing, either by the complainant or by the supervisor/FO Director to whom it is reported. A Harassment Complaint Form is available in [Annex F](#). Any supervisor or FO Director who becomes aware of possible harassment or retaliation must immediately advise a member of Partners HQ so it can be investigated in a timely and confidential manner.

All harassment complaints will be promptly and thoroughly investigated, and each complaint will be handled as confidentially as possible under the circumstances. Complaints will be investigated impartially and if found to be truthful, Partners Guatemala will take immediate

corrective action. Anyone found to have engaged in harassment will be subject to appropriate disciplinary action up to, and including, justified termination of employment.

7.4.2 Protection from Retaliation for Harassment/Bullying Complaint

Partners Guatemala prohibits any retaliation against employees who legitimately exercise their rights under this policy or who participate in an investigation. There is to be no interference, coercion, discrimination, reprisal or retaliation against any employee for making a truthful, good-faith complaint or report of a violation. Employees who believe they are being discriminated against as a result of having legitimately filed a complaint or having truthfully participated in an investigation should immediately notify their supervisor, FO Director or Partners HQ.

7.5 Freedom of Association

Guatemala law recognizes and protects freedom of association. Workers may exercise this right without discrimination and without being subject to prior authorization. These workers must only comply with the requirements established by law. Workers may not be fired for participating in the formation of a union and will have this right from the moment they give notice to the General Labor Inspectorate.

7.6 Freedom of Work

In accordance with Article 102.a of the Guatemalan Constitution and Article 6 of the Labor Code, Partners Guatemala recognizes the freedom to work. No one can limit or prevent another from dedicating himself/herself to their profession. Partners Guatemala may not assign or alienate the rights that each individual has under their contract or employment relationship, unless their express written authorization has been previously obtained, and will not restrict any individual's freedom to work.

7.7 Anti-Forced Labor

The Partners Guatemala prohibits all forced labor. Forced labor shall mean any work or service exacted from an individual under the threat of any penalty and for which the

individual has not voluntarily offered himself. No citizen can be forced into forced labor except in the case of a legal conviction.

7.8 Conflict of Interest

Partners Guatemala requires that all potential conflicts of interest be reported immediately to the FO Director and Partners HQ. A personal conflict of interest is a situation in which an employee, or entity representative has a financial interest, personal activity or relationship that could impair the employee's ability to act impartially when performing activities on behalf of Partners Guatemala. To avoid a conflict of interest, Partners Guatemala does not allow any employee, entity representative or any member of an employee's immediate family to receive a sub-award or have any financial or other interest in the entity selected for a sub-award without disclosing the conflict. Additionally, all employees, and representatives of Partners Guatemala must neither solicit nor accept gratuities, favors, or anything of monetary value from sub-recipients or prospective sub-recipients. Any outside business dealings of Partners Guatemala's employees must be legal and not conflict in any manner with Partners Guatemala's operations. Outside business dealings include, but are not limited to, any investments, loans, employment, or business ownership by Partners Guatemala's employees.

Furthermore, contracts or transactions (i) between Partners and one or more of its board members, officers, or employees, or (ii) between Partners and any corporation, partnership, association or other organization in which one or more of its board members, officers or employees are directors or officers, or have a financial interest, shall not be void or voidable solely for this reason, or solely because the board member, officer or employee is present at or participates in any meeting which authorizes the contract or transaction, or solely because his, her, or their votes are counted for such purpose, if:

1. The material facts regarding the relationship or interest are disclosed or are known to the Board of Directors, and the Board of Directors in good faith authorized the contract or transaction by the affirmative votes of a majority of the disinterested

board members or officers, even though the disinterested board members or officers may then become less than a quorum; or

2. The material facts regarding the relationship or interest are disclosed or are known to the Board of Directors and officers voting thereon and the contract or transaction is specifically approved in good faith by a vote of the Board of Directors; or
3. The contract or transaction is fair to Partners as of the time it is authorized, approved or ratified by the Board of Directors.

Common or interested Board members or officers may be counted in determining a quorum at any meeting of the Board of Directors which authorizes the contract or transaction, provided, however, that the interested person or persons shall be excluded from the room during the discussion of the contract or transaction in question and during the vote thereon.

7.9 Confidentiality and Intellectual Property

Partners Guatemala's work makes it essential that employees do not divulge proprietary company information unless expressly authorized by an officer of the company. Partners Guatemala's employees and independent contractors may have access to and become acquainted with proprietary and confidential information such as client lists, rates, financial records, internal structure, internal policies, publications, inventories, computer software and related documentation and similar information, which is owned by Partners Guatemala and which is regularly used in the operation of the business of the company. All employees agree to not use such proprietary or confidential information obtained during employment or contractual relationship with Partners Guatemala as a means of making private profit.

Additionally, certain information concerning Partners Guatemala's business is a valuable, special and unique asset of the company. Employees agree not to disclose Partners Guatemala's proprietary or confidential information to any person or entity for any reason, except as required in the course of employment or contractual relationship, or required by law or court order; and further agree not to make use of such information his/her own benefit or the private benefit of others.

All files, records, documents, drawings, specifications, equipment and similar items relating to the business of Partners Guatemala, including computer software or software documentation, shall remain the exclusive property of Partners Guatemala and shall not be reproduced, removed or transmitted from the premises of the company under any circumstances without the prior written consent of the Partners Guatemala. Upon termination of employment with Partners Guatemala, employees are required to return all company property to the FO Director.

Employees also agree that if any trade secret, formula, device, technology, technical information, process, etc. (“invention”) is made during the course of employment or contractual relationship, alone or jointly with others which is made with Partners Guatemala’s equipment, supplies, facilities, trade secrets or time, or which relates to the business of Partners Guatemala, or which results from any work performed by me for Partners Guatemala, such invention will belong to Partners Guatemala and Partners HQ, whom will have full authority to use, transfer or license it. Partners Guatemala and Partners HQ will have the right to keep such invention as a trade secret, if it so chooses. It is further agreed that Partners Guatemala is not required to designate the employee as the inventor or author of any such invention if it is distributed publicly or otherwise.

Any violation of the provisions of this policy, relating to Confidentiality and Intellectual Property, may lead to disciplinary action, up to, and including justified termination.

7.10 Drug Free Workplace

It is the policy of Partners Guatemala to provide staff members with a working environment that is free from the problems associated with the use of illegal drugs. The use of illegal drugs is inconsistent with the behavior expected of staff members and subjects Partners Guatemala to unacceptable risks of workplace accidents or other failures that would undermine Partners Guatemala’s ability to operate effectively and efficiently.

In addition, the use of illegal drugs is contrary to the mission of Partners Guatemala, which includes providing drug prevention education to communities in Latin America, the Caribbean and the United States. In order to carry out this mission, Partners employees must

set an example in their behavior inside and outside the workplace. Therefore, employees found to be engaged in the use of illegal drugs or the unlawful manufacture, distribution, or dispensing of a controlled substance, either in or outside the Partners Guatemala's workplace, are in violation of Partners Guatemala's policies and are subject to disciplinary action, which may include justified termination. Each staff member must agree to notify Partners Guatemala of any criminal drug statute conviction for a violation occurring in the workplace no later than five (5) days after such conviction. Non-compliance with this policy will result in disciplinary action.

7.11 Smoke Free Workplace

It is the policy of Partners Guatemala to prohibit smoking on all Partners Guatemala's premises in order to provide and maintain a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind."

The smoke-free workplace policy applies to:

- All areas of Partners Guatemala building
- All visitors to the Partners Guatemala
- All staff and consultants working on Partners Guatemala's premises

Smoking is permitted outside the building where designated. Employees who violate the smoking policy will be subject to disciplinary action.

7.12 Alcohol Policy

An employee whose use of alcohol adversely affects job performance is subject to disciplinary action, which may include discharge. Partners Guatemala may also require that an employee seek assistance and/or counseling services as a condition of employment in appropriate circumstances.

7.13 Code of Ethics

Partners Guatemala has established the below Code of Conduct. It has consequently incorporated these standards, not only in relation with its employees, but also with its

consultants, and where the non-respect of all or one of them is a justifying cause of termination of an employee contract or the end of a specific job. Each employee, volunteer, consultant and representative and member of the Partners Network is expected to adhere to a high standard of ethical conduct. The good name of Partners Guatemala depends on the way its network and representatives conduct business and the way the public perceives that conduct. Unethical actions, or the appearance of unethical actions, are not acceptable.

Below is Partners Guatemala standard code of conduct principals:

1. Sexual exploitation and abuse by employees is a serious misconduct that may result in termination of the employee's contract.
2. Sexual activity with children (persons under 18 years of age) is prohibited without involving the age established in the country. It is not accepted as a defense that there is a misleading assessment of the age of the child.
3. The exchange of money, employment of goods or services for sex, including sexual favors or other forms of behavior used to humiliate, degrade or exploit, is prohibited. This includes the exchange of assistance that must be addressed to the beneficiaries.
4. Sexual relations between humanitarian workers and beneficiaries are strongly censored because they are based on inherent inequalities. This type of relationship transgresses and violates the credibility and integrity of the work of humanitarian assistance.
5. In the event that an employee of the Humanitarian Section is aware of or makes reference to suspicious behavior related to sexual abuse by a co-worker, whether working in the same office or not, he or she should report it to your supervisor or Partners HQ.
6. Humanitarian staff is required to create and maintain an environment that prevents sexual exploitation and abuse and can promote the implementation of a code of conduct. Managers at all levels have special responsibilities to support and develop systems that maintain this environment.

7. All persons interacting with or representing the Partners Network should maintain the confidentiality of information entrusted to them by Partners Guatemala and any other confidential information about the organization, its activities, partners, funders, stakeholders or suppliers, that comes to them, from whatever source, except when disclosure is authorized or legally mandated.
8. Persons interacting with or representing Partners Guatemala in a foreign country are responsible for knowing and complying with these laws. Furthermore, anyone interacting with or representing the Partners Network must also take care to understand and respect the cultures and customs of the countries where Partners operates. Anyone working in the international arena should be aware of the US Foreign Corrupt Practices Act. The Act prohibits giving anything of value to officials of foreign governments in order to obtain or retain business. It is prohibited for any representative of Partners Guatemala or its network to engage in bribery, kickbacks, payoffs or other corrupt business practices. It is also Partners Guatemala's policy to fully comply with all applicable US export, customs and trade control and regulations, licensing/trademarking/copyright requirements and other relevant US and international laws.
9. Partners Guatemala intends to provide a pleasant, healthful, comfortable, and professional atmosphere that is free from intimidation, hostility or other offenses which might interfere with the pursuit of our mission. Moreover, Partners Guatemala does not tolerate discrimination based on race, color, sex, religion, political opinion, disability, sexual orientation, economic situation, national ancestry, social origin, or any other legally prohibited characteristic. Harassment or discrimination based on sex or any other legally prohibited basis is illegal and is contrary to the policy of Partners Guatemala.

If you know of or suspect a violation of applicable laws, rules or regulations or this Code, you must immediately report that information to the FO Director and Partners HQ. Individuals can also contact Partners confidential hotline at 202-247-9610. Partners HQ will determine,

or shall designate appropriate persons to determine, appropriate action in response to violations of this Code.

Partners Guatemala prohibits any retaliation against anyone who makes a good faith report of a suspected violation or who participates in an investigation. There is to be no interference, coercion, discrimination, reprisal or retaliation against any person for making a valid and truthful complaint or good faith report of a violation. Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under any applicable federal, state, or local laws.

7.14 Grievance Policy

Partners Guatemala provides employees with the opportunity to bring work-related problems and concerns to the attention of management and to resolve such problems fairly and promptly. Any employee who feels that s/he has been treated unfairly or inequitably regarding a condition or action affecting employment should bring the matter to the attention the FO Director, Partners HQ or to the confidential hotline at +1 (202) 247-9610.

7.15 Whistleblower Policy

Employees have the duty to comply with all applicable laws and to assist Partners Guatemala to ensure legal compliance. Partners Guatemala encourages its employees to report improper activities in the workplace and will protect employees from retaliation for making any such report in good faith. Employees have the right to report, without suffering retaliation, any activity by the organization or its employees that the employee reasonably believes:

- Violates any local, state or federal law;
- Violates or amounts to noncompliance with any local, state or federal rule or regulation;
- Violates fiduciary responsibilities by a corporation to its stakeholders or employees.

In addition, employees can refuse to participate in an activity that would result in a violation of, or noncompliance with, any local, state or federal statutes, rules or regulations. Employees

are also protected from retaliation for having exercised any of these rights in any former employment. The whistleblower protection laws do not entitle employees to violate a confidential privilege of the organization (such as attorney-client privilege) or improperly disclose trade-secret information.

7.15.1 Whistleblower Complaint Procedure

Any employee who suspects a violation of ethics or legal compliance is required to report the situation(s) to the FO Director, Partners HQ or the confidential hotline at +1 (202) 247-9610.

7.15.2 Protection from Retaliation for Whistleblower Complaint

Partners Guatemala is prohibited from discharging an employee or taking other adverse employment action against an employee in retaliation for the employee's good faith complaint about safety and health hazards or other violations of law in the workplace and the environment.

7.16 Labor Disputes

In the event of labor dispute, the employee and Partners Guatemala will work to rectify the dispute immediately. In the case that the labor dispute cannot be resolved between the two parties, disputes will have to know and resolved by the Labor and Social Security courts and tribunals of Guatemala.

7.17 Hygiene, Health & Workplace Security

Partners Guatemala will take all necessary precautions to effectively protect the life, safety and health of employees. In order to ensure this, Partners Guatemala will take the necessary measures that are aimed at:

- Preventing accidents in the workplace;
- Ensuring that all machinery, equipment and other operations have security measures in place and are kept in good condition and will be subject to periodic inspection and maintenance;
- Preventing occupational diseases;
- Preventing fires;

- Providing a healthy and clean work environment;
- Providing the necessary clothing and equipment to ensure appropriate protection;
- Providing security guards for the office as necessary;
- Warning employees of any workplace dangers that could impact their health;
- Carrying out training activities on hygiene and safety at work as needed;
- Ensuring proper hygiene in sanitary facilities;
- Ensuring that appropriate hygiene is maintained in facilities where food or drinks are prepared; and
- Maintaining a first aid kit in the office.

Partners Guatemala will comply with the measures indicated by the Guatemalan Institute of Social Security and the Ministry of Labour and Social Security in order to prevent the occurrence of workplace accidents and occupational diseases. All employees share the responsibility for workplace safety. The FO Director is responsible for developing safety awareness and ensuring that all operations are performed with regard for the safety and health of all employees involved. Employees are responsible for continuously practicing safety while performing their job duties. Employees are encouraged to be alert to unsafe conditions and report them promptly to the FO Director. All reports can be made without fear of reprisal.

7.17.1 Housekeeping

Safety is directly related to neatness and cleanliness. Items that are out of place can cause accidents and injuries, and lack of cleanliness can quickly become a health risk. Furthermore, our office reflects our staff and organization to outside guests, so it is everyone's shared responsibility to project the best impression possible.

Employees are expected to keep their work areas neat, organized, and free of clutter or objects that could interfere with the work process or cause accidents. Employees should assist with keeping public areas presentable by:

- Returning tools and supplies to their proper place and condition after use.

- Properly disposing of trash and cleaning spills or other messes.
- Storing limited food items in the refrigerator, and promptly consuming or removing them.
- Making sure hallways, walkways and other publicly visible areas are free and clear of dangerous obstacles or unsightly objects.
- Reporting safety and maintenance issues immediately.

7.17.2 Job Related Injury Reporting

Employees should immediately report all work-related illnesses, injuries, or occupational disease exposures to the FO Director or Partners HQ. Employee should complete the Employee Incident Report Form, found in [Annex G](#). Once reported, the FO Director in conjunction with Partners HQ will determine the next steps.

Partners does not discriminate or retaliate against employees who have filed legitimate job-related injury report. Supervisors will not take or threaten any action to compel or persuade employees not a job-related injury report.

8. Recruitment and Labor Contracts

8.1 Application Process for Personnel

After a position is posted and available, the applicant must complete the Application Form for Personnel, template is provided in [Annex H](#). The applicant will then send the complete application to the FO Director. Only the final list of applicants who meet the qualifications will be sent to the supervisor of the position and Partners HQ, whom will proceed with the recruitment process, with support from the FO Director. Note that all recruitment of staff will be internal and/or external.

8.1.1 Internal Recruitment

In order to promote within Partners Guatemala as much as possible, the vacant position may be filled by any employee who would be interested and who, after evaluation, meets the

requirements for fill the vacancy. If a promotion is made internally, the employee may be eligible for a salary increase and other changes as determined by the new position.

8.1.2 External Recruitment

When external recruitment for a vacancy is needed, the job offer should be actively advertised and promoted locally and internationally. The advertisement should be clear, accurate and brief, but should also provide terms of reference, necessary training and experience, and how to apply. Advertising notices will be brief, clear, precise and at a minimum provide:

1. Reference terms;
2. Information on the necessary training and experience of the candidate; and
3. Place and deadline for submission of applications

Per Guatemalan law, any recruitment advertising cannot place requirements on the position that relate to sex, race, religion, political affiliation, socio economic background, ethnicity or marital status of the person.

The FO Director will review all CVs received and the selection criteria will be forwarded to the supervisor of the position and Partners HQ.

8.1.3 Transfer within the Partners Guatemala

An employee's transfer means moving from one department to another, to a similar position. The salary remains unchanged. This is not a disciplinary measure. The transfer of an employee is carried out:

1. By decision of the FO Director, when in the interests of Partners Guatemala and Partners HQ;
2. At the request of the employee, the case will be considered according to the possibilities within Partners Guatemala; and
3. At the request of his immediate supervisor

Any transfer of position requires the decision of the managers of the two (2) departments concerned, FO Director and Partners HQ.

8.1.4 Promotion within the Partners Guatemala

Promotion is not automatic. However, following the annual performance evaluation, an exceptional employee may benefit from promotion if there is availability within the organizational structure at Partners Guatemala. The promoted employee receives the basic salary corresponding to the new position held, in accordance with the pay grade and category.

8.2 Selection Process for Personnel

Both internal and/or external candidates should be reviewed and interviewed. A selection committee will be organized and must include at a minimum the position's supervisor, FO Director and Partners HQ. It will have two potential phases:

1. An interview of the successful candidates by a selection committee to assess:
 - a. The qualifications of the candidate in relation to the profile of the position to be filled;
 - b. His/her past experience;
 - c. His/her sense of responsibility;
 - d. His/her ability to perform the duties of the position; and
 - e. His/her ability to communicate.
2. A written or practical test (if required) to judge the technical qualifications of the candidate. This will include a matrix for evaluating candidates through a scoring system. This will support the procurement process for selecting the final candidate to fill the position.

Note: some projects will require specific qualification/requirements before hiring any Key Personnel. Any specific donor requirements should be followed when hiring any personnel.

Final candidate's information will be sent to the FO Director and Partners HQ for final approval. Once approved, the candidate will sign his/her contract and be provided with his/her orientation. All offer letters/agreements should, at a minimum, be signed by both the employee and FO Director.

8.3 Employee Definition

Under Guatemalan law, any person who provides services under the direction and dependence of another in Guatemala is considered to be an employee and is therefore subject to the labor laws. There is no distinction among employees as far as their employment rights are concerned, except in the case of high-level employees (altos empleados, trabajadores de confianza, representantes patronales), who are not subject to the limits on working hours and cannot form part of a workers' union or vote on a decision to declare a legal strike.

According to Article 351 of the Labor Code, Decree 1441 of Guatemala and Executive Accord 346: High-level employees (altos empleados, representantes patronales, trabajadores de confianza) are considered those who exercise judgment, determine moral suitability, and have sufficient power for correction or discretion in order to protect the security of the respective company. These are typically managers, administrators, proxies, (as the legal representatives of the companies) and in general, all those who work without immediate superior supervision and are in positions of trust. A trusted employee may have some degree of supervision, but it does not occur at the same time the job is executed. Additionally, a trusted employee is the one who has interference in decision-making, in the development and implementation of procedures, and in determining how work should be performed.

For these high-level employees (altos empleados, representantes patronales, trabajadores de confianza), the daily limit of 8 hours per day does not apply. The daily workday can be extended up to twelve hours a day, without the right to charge overtime.

An independent contractor does not provide services under the direction and dependence of another and is not subject to specific working hours. If an employee is misclassified as an independent contractor, they may bring an action before a labor court to determine whether their relationship constitutes employment and seek the payment of any employment benefits to which they would have been entitled had they been correctly classified as an employee.

8.4 Labor Contract Definition

A labor contract is any agreement by which a person commits himself to hire out his/her services to another person, under the control or the dependence of the latter, for remuneration. Per Guatemalan law these individuals must have the capacity to work and receive the agreed remuneration and, in general, to exercise their rights under the Labor Code of Guatemala.

Per Partners Guatemala, individual contracts of employment must be written, and all salary quoted in gross USD, except the incentive bonus which is stated in local currency. Labor contracts shall be drafted in Spanish and 3 copies made. One copy must be given to the new employee, one for the employer and one sent to the Labour Ministry within 15 days after the date on which they are signed. This includes all new contracts, modifications and/or novation.

All the legally established employee benefits are deemed to be automatically included in any employment contract. The minimum legal terms and conditions apply by default, unless custom or practice in the workplace, or an applicable collective agreement, includes any other term which improves the employment conditions for the employee.

8.5 Types of Labor Contracts

There is no restriction on the duration of any employment contract. The contract may be executed for an indefinite or a fixed period. The general rule is that contracts are executed for an indefinite period, although the law applies certain rules and penalties if fixed-period contracts are executed solely with the intention of circumventing the employment rights and benefits that would normally apply to indefinite period contracts.

Below are the options for labor contracts at Partners Guatemala:

- Fixed-term/Temporary contract -The fixed-term contract is the one which term is fixed in advance by the will of the parties. These contracts are legally considered to be an exception (as indefinite term contracts are the norm) and may only be executed when they are necessary due to the incidental or temporary nature of the work or

service to be performed. There is no legally established limit to the duration of fixed-term contracts or period after which the employee is deemed to be permanent. When a fixed-term contract expires, the employer must pay the employee the statutory payments, bonuses and benefits established for permanent employees, but only in the proportion of the contract's term; no severance entitlement is payable in such cases as the end of employment was clearly anticipated and employment ended with no harm towards employee. If the employer terminates the contract before the original fixed term, the employer must also pay the employee damages equivalent to one day's salary for each month of continuous work performed (or the corresponding fraction if they worked for less than a month). This specific amount of damages applies instead of the general severance pay that applies for dismissal without just cause. Therefore, although the termination of a fixed-term contract is less costly to the employer, the employer using a fixed-term contract still runs the risk of that contract being considered a permanent contract.

- Open-ended/Permanent contract - The open-ended contract is one whose term is not provided for in advance and which can cease at any moment by the will of the worker or the employer, without prejudice to the legal provisions regulating the termination of the contract of employment. A contract of a temporary nature which is tacitly renewed shall be regarded as having been transformed into a contract of indefinite duration, granting the worker all the benefits and legal advantages attached to it.

8.5.1 Part-Time Labor Contracts

In accordance with Guatemala's acceptance of the ILO Convention 175 a part-time worker has the right to minimum wage determined on an hourly basis and is entitled to all labor benefits calculated in a proportionate manner.

8.5.2 Payment Structure for Labor Contracts

Upon the creation of an employment opportunity, the FO Director must determine what type of payment structure for the labor contract will be needed, based on the work performed. The following types of payments options are available:

- **Fixed Price** – Fixed Price labor agreements are used mainly for assignments in which the content and length of the services and the required output of the worker are precisely specific and for these reasons the worker can generally control the scope of work and duration of services. Under a fixed price agreement Partners Guatemala agrees to pay the worker a predetermined set amount of money for certain products of specified technical natures, such as reports, project designs, etc. that is to be delivered within a specified deadline, the quality of which can usually be readily assessed. Fixed-price agreements provides for a price that is not subject to any adjustment based on the worker's cost experience in performing the contract. It provides maximum incentive for the worker to control costs and perform effectively.
- **Time- Based (Hourly, Weekly, Monthly, etc.)** – In a time, based agreement, the worker provides services at a pre-determined time-based unit rate and records all hours worked under the scope of work. Time based labor agreements are recommended when the nature and scope of the services provided are such that a scope of work is general guidelines for the activities to be performed and when it becomes difficult to determine the exact time with sufficient precision, which is common in complex scope of works.

8.5.3 Pay Structure

All permanent staff members of the organization, except for consultants, are paid according to the salary schedule of Partners Guatemala.

Each position in a category is based on a combination of:

- a) Level of responsibility
- b) Qualifications required for this position

8.6 Content of Labor Contracts

Each labor contract must include at a minimum the following elements:

- Names and surnames;
- Age;

- Sex;
- Marital status;
- Nationality;
- Accurate indication of the worker's residence;
- Municipal residence of the parties;
- Date of the initiation of the employment relationship;
- Indication of the services that the worker is obliged to provide or the nature of the work to be executed, specifying if possible, the characteristics and conditions of the job;
- Place or places where services should be provided;
- Duration of the contract as either an indefinite time period, or a fixed term;
- Working hours and work schedule;
- Salary, benefits, and/or commission including the form of payment, the time period for payment and the place payment will be issued;
- Other legal provisions based on the parties' agreement;
- Places and date of the binding of the contract; and
- Signatures of the contracting parties and the number of their national IDs

8.7 Obligations of Binding Labor Contract

Per a legal labor contract, below are the obligations and prohibitions of each contracting party.

The workers' obligations are as follows:

- Perform the services as contracted by the employer;
- Comply with the working hours in the workplace and observe the legal or regulatory provisions regarding work;
- Perform the work with efficiency, care, diligence; dedication and in the appropriate manner;

- Save unused materials and preserve in good condition the instruments and tools that are used during work. Note: employees are not responsible for normal deterioration or issues that occur by chance, force majeure, poor quality or defective construction;
- Keep his/her boss informed of possible defects in materials which could cause damage to the company;
- Treat his/her boss and fellow workers with respect;
- Obey the instructions, orders and instructions of the employer or person in charge of the work;
- Provide the necessary assistance in case of an accident;
- Not to disclose secrets of employer, neither to compete with and be loyal to the employer;
- Strictly observe the measures in place that protect the employee's security and that of their co-workers, and the security of the places where work is performed;
- Indemnify the employer for all damage caused by his own fault to premises, raw materials and tools; and
- Fulfill all other obligations that would be specifically stipulated in the contract.

The workers' prohibitions are as follows:

- Leave work during normal work hours without a justified cause or without supervisor approval;
- In the workplace, promote political propaganda contrary to the democratic institutions in the Constitution or execute any act that is meant to coerce individual's freedom of awareness;
- Work while intoxicated or under the influence of narcotic drugs or in any other similar condition;
- Use tools or equipment provided by the employer for any other objective than as normally designated in the course of work;

- Carry weapons of any kind during work hours in the workplace, except in special cases duly authorized by the laws, or in the case of sharp instruments which are required due to the nature of work; and
- Any act that violates or attempts to sabotage the work.

Partners Guatemala obligations are as follows:

- Send an annual report to the Ministerio de Trabajo y Previsión Social (MTPS) which contain the following regarding the prior year:
 - Total income, bonuses, and other fringe benefits paid to employees;
 - Normal hours and overtime hours worked;
 - Names and surnames of employers; and
 - Age, nationality, sex, occupations, number of days worked, and salary paid to each employee.
- Provide a safe and secure work environment for employees;
- Provide employees the necessary time for voting in popular elections, without any reduction in salary;
- Determine, through internal rules, the working conditions and bring them to the worker's attention, provided employer has 10 or more employees;
- Provide the worker with suitable work premises and tools in the required hygiene, safety and operating conditions;
- Pay to the worker in full and on the due date the remuneration provided for in the contract, after deduction of any legal and contractual charge for the repayment of loans, advances, proven losses and damages affecting the employer's revenues, property or facilities;
- Provide 12 monthly salaries per year, plus any overtime, a mid-year (Bonificación Anual para Trabajadores del Sector Público y Privado, Decreto 42-92) and a Christmas bonus (Aguinaldo, Decreto 76-78). The bonuses are equivalent to one month's salary and the employer pays these bonuses in the middle of, and at the end of, the year;

- Right to an incentive bonus must which is a minimum of GTQ250 (approximately US\$32) per month;
- Provide severance pay in cases of dismissal without just cause;
- Provide wedding leave, bereavement leave, maternity leave; birth of child leave, jury duty leave, and union leave (where applicable);
- Treat the worker with respect, being careful not to inflict any verbal or de facto maltreatment; and
- Fulfill all the other obligations stipulated in the contract.

Partners Guatemala prohibitions are as follows:

- Induce or require the workers to buy or consume the company goods or services;
- Demand or accept money or other compensation as means to receiving promotions, bonuses, or other improved working conditions or privileges;
- Forcing or attempting to force an employee to withdraw from unions or legal groups to which they belong, or enter the union or group in order to influence the outcomes;
- Influence your political decisions or religious convictions;
- Retain any items of the employee as a guarantee or compensation;
- Make or authorize mandatory enrollments for employees, except those required by the law;
- Direct or allow work to be conducted in a state of drunkenness or under the influence of narcotic drugs or in any other abnormal similar condition; and
- Any other act that prohibits or restricts any employee right that is protected by law.

8.8 Termination & Suspension of Labor Contract

Labor contracts may be terminated entirely or suspended for a period in certain circumstances.

8.8.1 Temporary Suspension of Labor Contract without Liability for the Parties

- Lack of raw materials to continue working that is not attributable to the employer;
- A legally declared lockout;

- A legally declared strike, the cause of which is not considered by labor courts to be attributable to the employer;
- Unpaid leave or breaks as agreed upon in writing between the employer and employee;
- Provisional prison or other minor arrest in which the employee temporarily cannot attend work;
- Diseases, occupational hazards, required leave under the law; pre and postnatal breaks and other issues that produce temporary disability which inhibits the ability to perform work;
- Force majeure or fortuitous event, resulting in an immediate but temporary stoppage of work (e.g. natural disasters, accidents involving office or materials, fire, etc.); and
- The death or incapacitation of the employer, when this results in the suspension of work as a necessary, immediate and direct consequence. This will only apply to individual employers, and not to companies or other business entities.

8.8.2 Termination of Labor Contract

Employees can be terminated at will and dependent on the contract, with or without notice. The law requires that all salaries, bonuses and other applicable employee benefits must be paid to the employee up to the date of their dismissal, whether the dismissal is for a just cause or not. However, if no just cause for termination exists then a severance pay is due to the employee. There are a few exceptions in which termination is not legally possible except with prior judicial authorization. These exceptions include dismissal of pregnant or nursing employees, employees participating in the formation of a workers' union, and of union leaders.

There are 3 (three) ways in which a labor contract can be terminated.

1) *As a matter of law*; without the need for legal proceedings or a court decision.

- Completion of work in the case of contracts concluded for a specific work
- Expiry of the period laid down in the contract
- Grounds for termination expressly stipulated in the contract

- Death of the employee
- Duly proven case of force majeure
- Complete and final closure as a result of the death of the employer, or insolvency or bankruptcy in case of juridical entities and companies.

The automatic termination of the individual contract of labor shall entail no liability for the contracting parties in the first three bullets only. The last three bullets remain subject to the legal provisions and may require severance.

2) *By mutual consent of the parties* - The cancellation must be confirmed in writing. There shall be no liability for either party following the termination of the individual labor contract by mutual consent, unless otherwise agreed by the parties.

3) *By the will of one of the parties*

Resignation with Cause: An employee who wishes to terminate his/her labor contract without any liability for himself/herself shall inform FO Director or Partners HQ on one of the following grounds:

- Failure to pay the full remuneration at agreed or customary dates and locations;
- Verbal excesses, insults or threats on the part of the employer;
- Intentional damage to the instruments or tools of work by the employer or his representative;
- When the employer or his representative at or outside of the workplace slander, insult or attack an employee that it becomes impossible to coexistence in the workplace and complete the contract (provided that such acts were not provoked during non-work hours);
- Presence of persons carrying contagious diseases if the worker is to remain in immediate contact with the affected person;

- Threat to the safety or health of the worker due to lack of hygienic conditions in the workplace or failure to comply with preventive and safety measures prescribed by law.
- If the employer acts recklessly, carelessly or inexcusably regarding the safety conditions of the workplace;
- When the employer transfers work to another employee in a lower position with less pay and it fundamentally alters the conditions of work;
- Breach of obligations imposed on the employer by contract or by law (ref: Obligations of Binding Labor Contracts).

Resignation: If an employee decides to voluntarily terminate the work relationship; he/she must notify the employer beforehand in writing. The notice must be given in accordance with the rules established in the Labor Code. No severance entitlement is owed in such cases.

Termination with Cause: Partners Guatemala if wishing to terminate the labor contract of an employee without liability must terminate based on one of the just causes for dismissal as outlined in Article 77 of the Labor Code:

- If the employee has acted with lack of integrity and honor during the execution of tasks and has incurred in slander against the employer or his representatives,
- If the employee commits any of the aforementioned acts against one of his fellow co-workers, causing alteration to the workplace's order or the interruption of the work,
- If during non-working hours the employee commits any of the aforementioned acts against the employer or his representatives,
- If the employee commits any felony or fault against the property of the employer or fellow co-workers or a third party in the establishment, and if the employee causes serious damage, intentionally, with negligence or

recklessness, to the machinery, equipment, raw materials, products and any other objects related to their works,

- If the employee reveals secrets,
- If the employee does not attend work during two consecutive days or six half days in a period of one month,
- If the employee manifestly refuses to adopt preventive measures or follow procedures established by law, to avoid accidents or illnesses; or when the employee refuses to adopt the instructions given by the employer or his representatives to obtain better performance and efficiency in his tasks,
- If the employer infringes any of the prohibitions stated in Article 64 of the Labor Code or in the duly approved internal manual, after being warned in written by the employer. Prior warning is not required if the employee is under the effects of alcohol, and consequently endangers life and security of people or assets of the employer,
- If the worker deceived the employer pretending to have capacities or knowledge he does not possess or by means of false letters of recommendation or certificates,
- If the employee has been sentenced to prison by irrevocable judgment,
- If the employee violates any other obligation of the employment agreement.

Termination without Cause: If Partners Guatemala terminates the for any reason that differs from what is established by law or agreement, the Employer must pay the Employee payments established by the Labor Code that is in force, such as severance for time served and proportional labor benefits (i.e. Annual leave).

8.8.3 Work Certificate upon Termination

Upon the expiration of any labor contract, for any reason, the employer must give the employee a document that states the following:

- Start and end date;
- Type of work performed;
- Normal and overtime salary earned during the last payment period.

If the employee prefers, the work certification can also include the following:

- Information on the quality or way work was performed; and
- The cause(s) for termination

8.9 Probation Period 60 Days

All new employees are subject to a probationary period of 60 days. During this trial period he/she may terminate his/her services without notice. One week before the end of the probationary period, the candidate will be evaluated and if he/she does not meet the requirements of the position he/she may be terminated at the end of his/her probation, without notice, but he/she will be entitled to the Bonus and leave proportional to the number months of service and will be compensated for all time worked.

For all indefinite period employment relationships, during the probation period, the employer or employee can terminate the contract, with or without just cause, and without incurring any penalties or liabilities. Once the trial period expires, if the employment continues, all the statutory rights automatically apply to the employment contract.

8.10 Guiding Language

In accordance with Article 9 of the Labor Code, all orders, instructions, notices or provisions given to workers will be in Spanish or the appropriate indigenous dialect (if applicable, according to the region in which workplace is located).

8.11 Mandatory Notices for Termination of Labor Contract

The employer or the employee who wishes to justifiably terminate a written labor contract must give written notice to the other party.

8.11.1 Mandatory Notices for Termination – Employer Responsibility

Dismissal with just cause: Per Article 78 of the Labor Code, written notification must be given to the employee, indicating the cause of dismissal but no notice period is required.

Dismissal without just cause: Per Article 82 of the Labor Code, statutory notice periods are not binding on the employer, and no prior notice requirements apply. The employer must only provide a notice period where the employment contract stipulates that this applies.

8.11.2 Mandatory Notices for Termination – Employee Responsibility

Dismissal with just cause: Any employee who wishes to terminate his/her indefinite contract with just cause must provide written notification to the employer, indicating the cause of dismissal but no notice period is required.

Dismissal without just cause: Any employee who wishes to terminate his/her indefinite contract without just cause after the trial period has elapsed, must give prior notice. The required employee notices are below based on length of service:

Service Period	Notice Period
From 0 to 6 months	1 Week
From 6 months to 1 year	10 Days
From 1 to 5 years	2 Weeks
5 or more years of service	1Month

8.12 Statutory Benefits – Severance Pay

Dismissal with just cause: Employees terminated with cause do not receive severance payments per Article 77 of the Labor Code, provided employer is able to prove justified causes of termination before the labor courts.

Dismissal without just cause: Per Article 82 of the Labor Code, severance pay is required by Guatemala law and the calculation is based on the employee's last six months of salary, including all payments received (bonuses and other applicable employee benefits).

Termination without cause receives one-month salary for every year of service or in proportion to the period of continuous service where this is less than one year.

Resignation: Severance pay does not apply if the employee terminates the contract voluntarily.

8.12.1 Early Termination of Fixed Term Contracts – Severance Pay

If the employer terminates fixed term contract before the original end date, the employer at a minimum must also pay the employee damages equivalent to one day's salary for each month of continuous work performed (or the corresponding fraction if they worked for less than a month). This specific amount of damages applies instead of the general severance pay that applies for dismissal without just cause.

8.13 Record Keeping for Personnel

Partners Guatemala requires that all documentation related to the solicitation, hiring, review and termination of employees be retained in secure personnel folders. These folders should all reprimands, warnings and suspensions of each for each employee with dates and reasons. Any required documents/provisions from the donor should also be included in the personnel record. Individual personnel folders/files should be maintained for all employees. All information provided by the employee is, and remains, confidential, and the documents in his/her file may not in any way be accessed by unauthorized personnel.

For each Partners Guatemala staff member there will be an individual file which will include:

- 1) The Vitae curriculum;
- 2) A copy of the certificates and diplomas mentioned in the CV;
- 3) The job application form;
- 4) The employment contract;
- 5) The job description;
- 6) Any documentation indicating a salary increase;
- 7) The Employee Evaluation Forms;

- 8) Any document relating to a change in position, transfer or promotion;
- 9) Any offer letters or warning letters; and
- 10) Record of paid leave or any other special leave requested and obtained
- 11) All documents related to:
 - a) Resignation
 - b) Revocation
 - c) Lay-off
 - d) Other causes of separation.

The Partners Guatemala reserves the right to verify the authenticity of any document submitted by the Employee.

8.13.1 Access to Personnel Records

The only individuals at Partners Guatemala, who have access to the personnel files, are FO Director, the Administrative and Financial Director. Employees will not be allowed to access or review their personnel files, however, upon special authorization and approval from FO Director, the employee may review their file. This review must be done in the presence of FO Director.

9. Worktime, Workdays and Holidays

9.1 Normal Daytime Work Hours

Work hours are time when the worker is available to the employers. Rest periods are time when the worker is not available for the employer's work.

Normal daytime work is between 6:00am and 6:00pm of the same day. Within this time period, the standard working hours cannot exceed eight hours per day or 44 hours per week. Each period of standard working time may be extended by up to two hours by agreement

between the employee and the employer, provided that the work is not hazardous and does not exceed the total weekly hours permitted by law.

All hours worked in excess of normal agreed work hours are overtime. Under no circumstances can the employee be required to work more than 12 hours in a workday.

Partners Guatemala observes the following working days and hours: Monday to Friday from 8 am to 4 pm (continuous work shift), or 40 hours of work per week.

9.2 Nighttime Work

Nighttime work is between 6:00pm of one day and 6:00am of the next day. Within this time period, the standard working hours cannot exceed six hours per day or 36 hours per week. All hours worked in excess of normal hours of work are overtime. Under no circumstances can the employee be required to work more than 12 hours in a workday.

9.3 Mixed Work (Daytime and Nighttime Work)

Mixed work is any time that comprises both normal daytime and normal nighttime work. Within this time period, the standard working hours cannot exceed seven hours per day or 42 hours per week. However, if four or more of the effective working hours occur within the standard nighttime period, then the entire period of work is legally considered nighttime work, and therefore the standard nighttime working hour restrictions will apply.

9.4 Overtime and Limitations

Overtime refers to any hours worked beyond normal working hours listed above. All work effectively done outside of normal work hours constitutes overtime work and must be paid as such, except in the case of high-ranking employees and trusted employees (altos empleados, representantes patronales, empleados de confianza), which are ineligible for overtime. These hours are compensated with an additional 50% surcharge. All overtime hours therefore are compensated at 1.5 times the hourly salary. However, Partners Guatemala believes that the daily work assigned to its employees can be done as part of her/his regular schedule. Therefore, except in case of emergency or force majeure, all overtime must be approved by the supervisor. An employee requesting overtime must

obtain the approval of his/her supervisor prior to overtime hours being worked. Any overtime worked without supervisor approval, will be paid, however disciplinary action will be taken including up to termination. Overtime is not considered as necessary because of the slowness of an employee in the performance of his/her duties, whether it is the improper performance of duties and/or the obligation to seek or correct errors.

9.5 Rest and Break Time

Below is the list of rest and break times allotted to all employees at Partners Guatemala, in accordance with Guatemala law:

- Half-Time Break - the worker has a right to a rest break of at least half an hour within the working time, which must be counted as paid working time (continuous work shift).
- Break for Pregnant Women - During the period of apparent pregnancy, the woman shall be entitled to two rest periods per day of at least half an hour each, in addition to the half-time rest for the meal. Prenatal breaks will be extended according to your physical conditions, by medical prescription. These moments of rest are paid.
- Breastfeeding Break - Any mother breastfeeding her child shall be entitled to two rest periods per day of at least half an hour each, in addition to the half-time rest for the meal. The nursing period starts from the day when the mother returns to work and up to ten (10) months afterwards, except if this period must be extended due to medical prescription. These moments of rest are paid. Working mothers may accumulate their breastfeeding time and enter an hour after the work shift starts or leave an hour before it finishes.

9.6 Weekly Rest Day

Every worker has the right to enjoy a paid rest day after each week after five or six continuous days of work (number of days depends on the normal employer work week), regardless of the number of hours worked during this period. This day of rest includes at least twenty-four (24) consecutive hours. Payment is made based on the daily wage for workers with a fixed salary, with the exception of employees with whom monthly wages

were agreed in which cases the weekly rest day is deemed included in the agreed monthly salary, in accordance with Article 129 of the Labor Code.

9.7 Holidays

All employees at the Partners Guatemala will be granted the following non-working holidays in accordance with local Guatemala law. If an employee must work on a holiday, the employee is paid a 50% surcharge, not including the increase for overtime, or payment of weekly rest. Additional paid holidays may be granted at the discretion of Partners HQ.

The legal holidays in Guatemala are:

- 1 January - New Year's Day
- Holy Thursday (Thursday before Easter)
- Good Friday (Friday before Easter)
- Holy Saturday (Saturday before Easter)
- 1 May - Labor Day/International Workers' Day
- 30 June - Day of the Guatemalan Army, commemoration of the Revolution of 1871
- 15 August – Assumption Day
- 15 September - Independence Day
- 20 October - Revolution Day
- 1 November - All Saints' Day
- 24 December - Christmas Eve (employees are entitled to a half-day holiday commencing at noon).
- 25 December - Christmas Day
- 31 December - New Year's Eve (employees are entitled to a half-day holiday commencing at noon)
- Day of the Local Town Festival

The public holidays of May 1st, June 30th and October 20th must, by law, be moved to the nearest Friday or Monday if it falls on a Tuesday, Wednesday or Thursday, to ensure that employees have a long weekend.

10. Wages and Social Benefits

10.1 Wages

All employees will be remunerated for work provided to Partners Guatemala. This wage or salary can be paid per unit of time, per piece work or it can be fixed.

In order to receive remuneration for time worked, all employees will need to complete timesheets. Time records are mandatory documents and the basic source of information for payroll purposes; therefore, time worked must be reflected accurately and in accordance with the [Section 10.3 Timekeeping](#). All staff is responsible for approving their timesheet to certify the accuracy of all time recorded. Each supervisor will review for accuracy and approve the time sheets after the employee submits. Remuneration to all employees will be based on the approved timesheets only. All tax and other required deductions as mandated by local law will be withheld from each paycheck.

Salaries will be paid no later than the last working day of each month by bank transfer.

10.2 Wage & Leave Advances

No wage or salary advances are allowed. Payroll is issued after the hours worked are completed and done. Furthermore, no advance leave for vacation, sick, or other leave may be taken.

10.3 Timekeeping

In order to ensure accurate timekeeping in the field, Partners HQ will require use of the electronic timekeeping and accrual platform called Replicon. Each employee will be responsible for utilizing his/her account to accurately record hours worked and request all types of leave. At the end of each week, employee will be responsible for reviewing and certifying their hours worked by clicking “submit” timesheet in Replicon. Subsequently, the respective employee’s supervisor will need to log in and review and approve of the hours worked and click “submit.” All timesheets will not be considered completed until both the employee and the supervisor have certified the timesheet. Monthly, all timesheets should be printed and filed in accordance with [4.2 Filing and Records](#).

Any leave that is not requested and recorded in Replicon correctly will be disallowed and not approved. Failure to accurately report time and/or leave requests can result in disciplinary action, up to and including termination.

10.4 Pay Slips (Paystubs)

All employees should receive a pay slip with their salary payment (regardless of method of payment) that documents the details of the payment. Pay slips should include the following information:

1. Name of employee
2. Period to which the payment applies
3. Units, rate, and extended amount of gross salary or wage payments
4. Units, rate, extended amount and description for each additional category of pay
5. Units, rate, extended amount and description for each deduction
6. Taxes withheld on behalf of the government or other taxation authority
7. Subtotaled net pay amount

The pay slips are completed using information from the reviewed and approved monthly payroll timesheets.

10.5 Bonuses & Benefits

10.5.1 Incentive Bonus

In addition to regular and overtime wages, employers are required to pay an incentive bonus (Decree 78-89 of Congress and further amendments). The law establishes a minimum amount of GTQ250 monthly (Approximately USD \$32). This amount must be included the all employees offer letters and quoted in Guatemalan Quetzal.

10.5.2 13th Month Bonus

Partners Guatemala must pay their employees a 13th Month or “Aguinaldo” (Christmas Bonus) on the second week of December of each year, equivalent to a month’s salary, calculated on the average ordinary salaries earned by the employee during the period ranging from December 1 of the previous year through November 30 of the current one. For

the calculation of the bonus. If the employee did not work for the entire period, the bonus must be paid proportionately to the time worked. This bonus is exempt from Impuesto Sobre la Renta (ISR) and Instituto Guatemalteco de Seguridad Social (IGSS) up to 100% of the normal monthly salary. If the bonus paid is greater than 100% of the normal monthly salary, then surplus must be charged ISR and IGSS.

10.5.3 14th Month Bonus

Partners Guatemala must pay their employees a 14th Month Bonus (Bono 14) on the second week of July of each year, equivalent to a month's salary, calculated on the average ordinary salaries earned by the employee in the prior 12 months. If the employee did not work for the entire period, the bonus must be paid proportionately to the time worked. This bonus is exempt from Impuesto Sobre la Renta (ISR) and Instituto Guatemalteco de Seguridad Social (IGSS) up to 100% of the normal monthly salary. If the bonus paid is greater than 100% of the normal monthly salary, then surplus must be charged ISR and IGSS.

10.5.4 Health Insurance

Health insurance is provided to all Partners Guatemala staff and 100% paid by Partners Guatemala. Dependents may be eligible for coverage but are 100% the responsibility of the employee.

10.6 Wage Deductions

A deduction is any withholding from an employee's salary payment made by Partners Guatemala.

10.6.1 Statutory Deductions

There is no difference between the entitlements to statutory employment rights for each category of employee, except for the restrictions on high-level employees as defined in [Section 8.3](#). Employees performing the special types of work regulated by the Labour Code have the same general statutory rights as any other employee, and the specific rules refer to the special circumstances in which each type of work is carried out.

The following deductions are mandated by Guatemala law to be withheld from all remuneration payments and paid into the Guatemalan government monthly:

Regular Salary Payments (excluding the bonus incentive):

- ISR: Impuesto Sobre la Renta (Income Tax)
 - Income tax of residents is calculated by applying a progressive tax rate schedule to taxable income as follows:

Taxable Income Bracket		Total Tax on Income Below Bracket	Tax Rate on Income in Bracket
From GTQ	To GTQ	GTQ	Percent
0	300,000	0	5%
300,001	Over	15,000	7%

Note: Rates will be updated in accordance with Guatemala law as required.

- Guatemalan-source income paid to non-resident persons is subject to a final withholding tax at a rate of 15% on salaries, wages, commissions, bonuses and any other remuneration.
- The tax will be withheld monthly by the employer, and subsequently paid into the Tax Administration by the 10th business days of the following month.
- Annual Reconciliation of Income Tax: Each year in January, employers must reconcile the Income Tax withheld monthly in the prior year, with the tax determination of each employee as of December 31. This final reconciliation of income tax will be done on the website of the Superintendence of Tax Administration (Superintendencia de Administración Tributaria).
 - If the tax withheld was less than the value of the total tax, the employer will proceed to withhold the missing amount.
 - If the tax withheld exceeds the value of the total tax, the employer will process returns for the employee.
- IGSS: Instituto Guatemalteco de Seguridad Social (Social Security)

- Social security contributions are charged on salaries. The contribution rate is 12.67% for the employer contributions and 4.83% for the employee contributions. No limits are imposed on the amount of earnings subject to social security contributions. Note: the 12.67% includes the Employees' Recreation Institute (Instituto de Recreación de los Trabajadores) (IRTRA): which is a required monthly contribution of 1% of the total of salaries paid and the Technical Training Institute (Instituto Técnico de Capacitación) (INTECAP): which is a required monthly contribution of 1% of the total of salaries paid.
- The social security contributions will be withheld monthly by the employer, and subsequently paid into the IGSS by the 10th business days of the following month.

Bonus Incentive:

- ISR: Impuesto Sobre la Renta (Income Tax)
 - The bonus incentive is subject to ISR.
- IGSS: Instituto Guatemalteco de Seguridad Social (Social Security)
 - The bonus incentive is exempt from IGSS, per the Decree 78-89.

In general, the following are be exempt from tax (both ISR and IGSS) in Guatemala:

- 13th Month or “Aguinaldo” (Christmas bonus)
- 14th Bonus (Bono 14)
- Severance entitlement payments (compensating time of service)

10.6.2 Other Deductions

The following deduction may only be made when there is a prior written agreement between the employee and Partners Guatemala:

- Deduction to pay back a salary advance granted by employer
- Reimbursement for damages to office, products, etc.
- Payments of salaries and other remunerations made in excess

The amount of said deductions may not exceed 1/6 of the monthly salary up to the amount due, except in the case of termination of the employment contract when the reimbursement guarantees given by the worker are insufficient.

10.7 Paid Leave

All employees will be entitled to the following paid leave, in addition to all the holidays mentioned above.

10.7.1 Annual Leave

All employees are entitled, after one year of service, to a paid leave of at least 15 working days. Each month, 1-day $\frac{1}{4}$ (1.25 days) of paid leave will be accrued. For an employee with less than one year of service, the number of annual vacation days = the number of months of service x 1.25. The vacations must be provided, and the employer cannot compensate for this benefit in another manner, except upon termination. The annual leave does not increase by law based on years of service. On January 1st of each year, the annual leave accrual balance will reset. The maximum carry over value is up to five (5) days of annual leave. Any days above five (5) days will be forfeited.

Employees cannot accrue vacation periods year by year with the purpose of receiving a longer vacation period afterwards. Labor law provides that all employees must receive the complete, uninterrupted vacation period, meaning that the employer cannot ask an employee to suspend it, unless very qualified or indispensable employees in which case vacation periods can be split in two. Furthermore, any agreement to relinquish the right to an annual holiday with pay or to forgo such a holiday shall be void.

Non-working holidays and interruptions of work due to sickness or maternity benefiting the worker shall not be deducted from the 15 working days of annual leave. All annual leave requests must be tracked and recorded properly on the employee's timesheets.

An employee who, after two days of ending his/her annual leave does not show up for his position without just cause, is considered to have resigned.

10.7.1.1 Annual Leave Payout upon Termination

In case of suspension, dismissal or resignation of the employee for any reason before the expiration of his year of service, and whatever the duration of employment, the worker is entitled to payment of his/her portion of annual leave he/she didn't receive in the last five years. Employees are entitled to the number of days of regular annual leave accumulated up to the date of termination. The calculation of this payment will be based the average salary for the past three months including regular hours and any overtime.

10.7.2 Sick Leave

All employees are entitled Sick leave entitlement is in accordance with length of employment as shown below:

Service Period	Sick Leave Coverage
From 2 to 6 months	50% of 1 Monthly Salary
From 6 to 9 months	50% of 2 Monthly Salary
Over 9 months	50% of 3 Monthly Salary

Sick pay will be paid either by IGSS under its own regulations, or by the employer if the employee, the illness or the injury are not covered by the IGSS regulated benefits.

If the employee has not recovered from the illness or injury after the time period during which he or she is entitled to receive sick pay from the employer, the employment relationship is suspended automatically by the law and both the employer and the employee cease to fulfil their fundamental obligations under the employment contract (with the result that the employer ceases to make any further payments of salary). The employment relationship is not terminated but is deemed to be in "total suspension": the employee may terminate the relationship, but the employer may only do so with just cause. In any event, the employer may employ an interim replacement, who may be legally dismissed once the original employee returns to the post.

Sick leave will only be granted upon presentation of a medical certificate issued by the attending physician. This certificate is mandatory for any sick leave exceeding two (2) days. All sick leave requests must be tracked and recorded properly on the employee's timesheets.

10.7.3 Maternity Leave (Pre and Post Natal)

Every pregnant woman shall, on production of a medical certificate indicating the expected date, be entitled to a maternity leave during which she shall be paid as if she were continuing to work. Maternity leave is a paid leave of absence. The duration of the maternity leave is set at 12 weeks, of which 30 days is for pre-natal care, and 54 days post-natal care for 84 days total. Any paid leave not taken during pre-natal leave period must be accumulated to the post-natal leave period, to ensure that the employee receives a total of 84 leave days during the maternity leave.

An employee is entitled to half of this paid leave or 42 days of paid leave in cases of miscarriage or stillbirth, and up to three months' paid leave in cases of illness arising from pregnancy or childbirth.

A female employee who adopts a minor is entitled to the equivalent of post-natal leave, which is 54 days, starting from the day that the minor begins living with the employee.

All maternity leave must be tracked and recorded properly on the employee's timesheets.

Pre-natal and post-natal leave, as well as the other cases of paid leave connected with pregnancy mentioned above, must be paid at full salary by the employer, unless the worker is entitled to receive benefits regulated by IGSS.

Additionally, the employer cannot require pregnant women to perform jobs that require considerable effort three (3) months prior to delivery.

10.7.4 Bereavement Leave

Employees are entitled to statutory paid leave (licencia) for bereavement leave. Three days paid leave is provided to employees for the death of a civil or common-law, spouse, parent or child.

10.7.5 Wedding Leave

Employees are entitled to statutory paid leave (licencia) for their wedding. Five days paid leave is provided to employees for the employee's wedding.

10.7.6 Birth of Child Leave (Paternity)

Employees are entitled to statutory paid leave (licencia) for the birth of a child. Two days paid leave is provided to employees for the birth of a child. While there is no specific paternity leave, fathers are entitled to the two days of paid leave for the birth of their child.

10.7.7 Jury Duty

Employees are entitled to statutory paid leave (licencia) in the event of being summoned to attend court proceedings. Employees are provided a half a day, or full day of paid leave to attend a judicial summons. Depending on the location of the summoning court, half day leave is provided for those inside the employee's departmental jurisdiction, or a full day for those outside it.

10.8 Benefits Accruals

Some types of benefits may be paid out directly when they are earned, such as health benefits and therefore these types of benefits should be recorded as an expense directly in the period in which they are earned and paid.

Other benefits, such as annual leave, bonuses, severance pay, etc. are earned over time and will only be paid out later as defined by the policy above. In order to reflect the future commitment to pay as well as the proper allocation of the expense to projects, these types of benefits should be accrued monthly on the books. The amount that is earned each month should be calculated and recorded as an expense and, since no funds will actually be disbursed until the benefit is paid out in the future, an offsetting liability should be set up on the balance sheet. When the benefit is eventually paid, the payment will clear the liability account.

It is the responsibility of the FO Finance Manager to analyze Partners Guatemala's staff benefits package to determine if a benefit should be accrued. The FO Finance Manager must

ensure that benefits accruals are well documented, as these accruals can carry over for an extended period. Accrual accounts should be reconciled monthly and proof of the reconciliation sent to Partners HQ each month. The leave accruals should match the Replicon timekeeping system totals for each employee.

10.9 Social Benefits

The following social benefits will be provided to all employees of Partners Guatemala.

10.9.1 Maternity Rights

Female employees may not be dismissed during pregnancy or while they are nursing, unless there is a just cause for the dismissal provided by law, and a prior judicial authorization has been granted for the dismissal.

Pregnant workers cannot be required to undertake tasks involving considerable physical effort during the three months before giving birth.

11. Employees

11.1 Job Descriptions

All permanent field staff positions should have job descriptions that are established, accurate and up to date. Job descriptions should reflect the actual work undertaken and should clearly outline the expectations of the worker employed in that position. A copy of the job description should be provided to each staff member when they commence work.

At times the employee supervisor should give feedback to their staff member based on a comparison of their work performance and the expectations in the job description. Partners recommends that this be in correlation with midterm or yearly performance reviews. Job descriptions should be used in the performance appraisal process to assess the employee's achievements and performance in accordance with the process established by the FO Director.

Should Partners Guatemala choose to alter the duties and responsibilities for a position, the job description should be subsequently altered. The decision to alter a job description must

be made by the FO Director and employee's supervisor. If the resulting decision has budget implications, approval is also required from Partners HQ.

11.2 Performance Evaluations

The employee's supervisor will conduct a written performance evaluation on an annual basis. Initial performance evaluations will generally be performed after three months of employment upon the end of the probationary period. This evaluation will not be used as basis for salary increases. The evaluation will be written and will be based on available job descriptions, standards of performance, and such other factors which Partners Guatemala determines to be appropriate. Employees will have the opportunity to review, evaluate and discuss their performance as well as obtain feedback from Partners Guatemala. Standards for evaluation templates will be provided by Partners HQ and found in [Annex I](#).

11.3 Salary Adjustments

Salaries for all employees are reviewed no less than 12 months after the last salary review. Adjustments to salaries are merit-based changes deriving from the performance of an individual. In all instances, increases are dependent on the overall financial health of the organization, **all merit-based salary adjustment recommendations must be approved by Partners HQ**. The template for all salary increases is provided by Partners HQ and found in [Annex I](#).

11.4 Salary Advances

Salary advance are not provided under any circumstances.

11.5 Dress Code for Personnel

The image of Partners Guatemala is reflected in the presentation of each of its employees. Partners Guatemala dress code is business professional clothes from Monday to Thursday. Friday is informal and casual clothes may be worn. If employees have a field visit, it is recommended that they consider the location and to dress accordingly. All visits to the US Embassy or USAID require formal dress.

Each employee is expected to dress and groom appropriately for the job, presenting a clean and neat appearance. Attire should promote a businesslike, professional attitude and image in keeping with the employee's job and overall work environment. Any employee unsure about appropriate attire or grooming should consult with his or her supervisor. In setting standards for dress and grooming, supervisors will consider exceptions for any religious or similar considerations that are requested.

If an employee's dress or grooming does not comply with established standards, it will be discussed with the employee and the employee may be sent home for the remainder of the day (without pay) or to change clothes and return to work. If discussions fail to bring the desired result, the supervisor may initiate disciplinary action.

11.6 Communicating Absences or Delays

If an employee is delayed arriving to work or absent, he/she must notify his/her supervisor with as much advanced notice as possible. In the case of an unforeseen delay or absence, the employee will be required to call and notify his/her superior. If the delays or absences become too frequent or occur without notification, the supervisor must address a memo to the FO Director documenting such incidents. If the cumulative absences or delays in work are consecutive or unjustified Partners Guatemala reserves the right to take disciplinary action, up to and including justified termination. If an employee is absent due to illness beyond two (2) consecutive days, he/she must provide a doctor's note or medical certificate, otherwise the employee may be considered as having abandoned his/her post after the third consecutive day.

The FO Director of Partners Guatemala may terminate the employment agreement of any employee who is absent from his/her workstation two (2) consecutive days or six (6) half days in a period of one month without notice or justification is automatically considered as having abandoned his/her position.

An employee who wishes to be delayed or absent for a valid personal or professional reason during working hours, must first seek and obtain the authorization of his/her immediate supervisor.

11.7 Dispute Resolution

Regrettably, conflict can occur in any work environment. To resolve the conflict in an expedient, yet fair manner, Partners Guatemala recommends the following process for conflict or dispute resolution.

1. Speak directly to the person you are having the dispute with. Many times, disputes arise due to misunderstandings and miscommunications.
2. If speaking to the individual does not work, please speak to your supervisor, FO Director, or any other member of Partners HQ. Then the supervisor, FO Director, or Partners HQ will arrange a meeting between those involved in the dispute, to determine a resolution.
3. If the above options are unable to resolve a workplace dispute, the parties may be referred to mediation by an outside third party. The resolution of the third-party mediator is binding on both parties of the dispute.

11.8 Disciplinary Action

Violations of this policy may result in discipline up to and including termination of employment. Note: Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under any applicable federal, state, or local laws.

Partners Guatemala may decide in its sole and complete discretion to warn, discipline, suspend or discharge employees with or without progressive disciplinary actions. The appropriate action will depend on the severity of the problem, the employee's past performance or the needs of the business.

Unacceptable behavior, which does not lead to immediate dismissal, may be addressed with a verbal or written warning. Written warnings will include the reasons for the supervisor's dissatisfaction and any supporting evidence. Employees will have an opportunity to defend your actions and rebut the opinion of your supervisor at the time the warning is issued. Disciplinary actions may also include work suspensions or other measures deemed appropriate to the circumstances. Work suspensions (without pay) may only be applied after

following the procedure laid out in the Internal Working Regulations (Reglamento Interior de Trabajo).

All pertinent facts will be carefully reviewed, and the employee will be given a full opportunity to explain his or her conduct before any decision is reached. The FO Director will give a second opinion concerning the unacceptable behavior before dismissal occurs.

11.9 Reasons for Disciplinary Action

In establishing rules of conduct, Partners Guatemala has no intention of restricting the personal rights of any individual. Rather, we wish to define the guidelines that protect the rights of all employees and to ensure maximum understanding and cooperation. The following list of work rules is an illustration of the type of behavior that will not be tolerated by Partners Guatemala. This list is not all-inclusive. Any employee who violates any of the work rules listed below may be subject to disciplinary action, up to and including termination of employment. The level of disciplinary action taken will be determined at management's discretion and judged by the severity of the violation:

- Failure to comply with Partners' Guatemala procedures, policies or practices.
- Submission of false, misleading or incomplete information to obtain employment.
- Failure to comply with Partners' Guatemala Proprietary Information and Confidentiality Policy.
- Theft or inappropriate removal or possession of Partners' Guatemala property.
- Falsification of timekeeping records.
- Negligence or improper conduct leading to damage of employer-owned or client-owned property.
- The use, influence, purchase or sale of illicit drugs, controlled dangerous substances (excluding lawful use of prescribed medication) or alcohol on Partners Guatemala's property or at a work site during working hours.
- Possession of weapons, explosives or firearms on company property.
- Committing violent acts or threats of violence.
- Committing acts of illegal discrimination or harassment.

- Insubordination, including refusal to perform assigned tasks or the performance of assigned tasks in an inappropriate manner.
- Violation of safety or health rules.
- Excessive absenteeism and/or tardiness without a proper excuse.
- Failure to meet performance standards.
- Failure to communicate and work well with others.

12. Risk Assessments & Contractor/Sub-recipient Monitoring

12.1 Risk Assessment Guidelines & Process

Partners Guatemala risk assessment validates that potential contractors/sub-recipients are viable, legitimate businesses and confirms that they have the financial capability and organizational resources to provide the required services. At the same time, it makes sure that contractor/ sub-recipients are not engaged in questionable ethical or legal activities.

Each time a new contract/agreement valued at USD \$5,000 or more is signed, Partners Guatemala will be required to send Partners HQ a completed Risk Assessment. The Risk Assessment template is found in [Annex I](#).

12.2 Frequency of Risk Assessment

For ongoing contractor/sub-recipient monitoring activities, a follow up Risk Assessment should be completed annually in January. The completed and updated annual Risk Assessments for all contract/agreements over USD \$5,000 must be sent to Partners HQ by January 31st.

13. Procurement

13.1 Procurement Process

In Guatemala, a full procurement is required for all goods and services valued at USD \$2,500 or more. It is required that an appropriate competitive process be utilized and fully documented (e.g., market research for commodities be/off-the shelf items; three quotes for lower expected values; full and open competition/tender for higher expected values, etc.) At minimum, a proper procurement process requires:

- Specifications, scope of work or technical requirements for the goods or services to be purchased.
- A defined criterion for selecting a good or service provider (e.g., price, capacity to deliver on time, quality of output, past performance where applicable, etc.).
- Approval from the donor to make the purchase when required.
- Solicitations of three (3) quotes or request for proposals from a pool of qualified providers or candidates.
 - In the absence of three submitted quotes or proposals, then a clearly documented memo for justification demonstrating that efforts were taken to obtain three quotes or proposals must be prepared and submitted as part of the procurement documentation.
- A memo that clearly documents the approved bid/proposal and analysis that documents the “procurement story” behind how the preferred supplier was selected and how the evaluation criteria were utilized.

In rare circumstances a sole source transaction may be permitted. A sole source transaction is one that normally would require full procurement; however, given certain circumstance, the purchase will be approved without full and open competition. This approval can only be forthcoming in writing from the FO Director or Partners HQ. Partners Guatemala should only consider sole source procurements in cases where there is clear evidence that the work is “so specialized” in nature that there is only one entity that could complete it. When an Employee, Representative or Affiliate proposes sole source procurement, he/she must

provide clear written justification documenting the process and efforts used for determining that there are no other qualified providers.

14. Travel Policies and Procedures

14.1 Policy Overview and Applicability

The objective of this policy is to manage a travel process fully compliant with the 2 CFR 200 and Partners Guatemala's rules and regulations with guidance from U.S. Government procedures.

The financial goal of this policy is to increase accountability and efficiency of travel expenditures and to ensure compliance throughout the full process of USG regulations, 2 CFR 200, and other applicable laws, including timely clearance of all travel reports (expense reports, and per diem payments).

This policy applies to all Partners Guatemala travelers unless otherwise indicated below. Specific guidance at a country and project level may be prepared on a case-by-case basis and approved by the CFO or CEO. In no event, shall these country or project-specific policies be out of compliance with the procedures and cost/time values identified herein.

14.2 Requesting Travel Authorization

Staff and consultants considering a trip must discuss with their supervisor the need for the trip, activities to be conducted, funding for related costs, expectations, etc. For all travelers including staff, consultants, volunteers and others traveling under Partners Guatemala funding, a travel authorization (TA) must be prepared prior to travel and booking of flights, hotels, etc.

All field staff and local consultants are required to complete a travel authorization, using the standard template for Field Office staff travel, and receive approval from their respective supervisors. Prior to travel all staff will complete the [Travel Itinerary & Per Diem Request Form](#). This form will collect the following information:

- Traveler's Full Name on official government ID (e.g., Passport)
- Date Requested

- Purpose of the Trip/ Scope of Work to be Performed
- Dates of Travel
- Proposed Itinerary
- Per diem requested

Once the form is completed, it will be uploaded into the Replicon platform at: <https://login.replicon.com/>. Employees will create a new expense report in Replicon to request approval for the travel authorization and per diem payment. The form will be uploaded into the Replicon database as supporting documentation for the per diem request. The employee will electronically submit the request for approval. The respective supervisor will then review the proposed travel itinerary and per diem request, and either approve or reject for modification electronically. Once a fully approved travel itinerary and per diem request are in Replicon, employee can proceed with remaining travel plans and bookings.

14.2.1 Itinerary Changes

The appropriate supervisor should approve the traveler's itinerary changes. After receiving approval from the supervisor, travelers can contact the appropriate agency to make the necessary changes. Most importantly, it is critical that the supervisor notifies the FO Finance Department, to ensure that the per diem amount or other changes can be made as necessary. In emergency circumstances, when a supervisor is not available or after hour changes must be made immediately, it is left to the discretion of the travelers. However, they are required to notify their supervisor once the change(s) have been made. Note that the supervisor reserves the right to not approve the change. In such instance, the traveler will be responsible for any difference in cost associated with the change. Disagreements will be resolved by the CFO at Partners HQ.

14.3 Traveler Definitions

Partners' travel policy is broken out based on three traveler types. All travelers are expected to comply with and follow the provisions in their respective categories as follows:

- US based/HQ
 - US based/HQ are all individuals with their principle desk location at HQ.
 - This includes but is not limited to:
 - HQ Staff
 - Consultants
 - Interns
 - Telecommuting employees, etc.
- Local Field Office staff
 - Local field staff are those on payroll at Partners field offices, including the Country Director
 - Local consultant based abroad are consultants paid directly by the field office
 - All other local travelers
- US based/Other
 - Including but not limited to volunteers, board members, etc.

14.4 Travel Advances

Partners Guatemala's policy is to only to make payments after goods and services have been supplied and conditions for payment met, therefore NO advances will be made for staff going on work related travel.

14.5 Allowable and Unallowable Expenses (Applicable to All)

The following allowable and unallowable expenses apply to all Partners Guatemala travelers regardless of their relationship or the location of their base.

Partners Guatemala has a travel policy that provides a per diem for all Meals & Incidental Expenses (M&IE), while all other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare and train costs are reimbursed based upon actual expenses incurred. Allowable expenses are also limited to the conditions established on grants and agreements with funding agencies sponsoring the trip.

Furthermore, only allowable expenses are reimbursable under the category other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare and trains. No

later than 30 days following the final day of a trip, an Expense Reimbursement Report should be prepared and submitted to the traveler's FO Finance Department. Partners Guatemala will not accept reimbursement requests made after 60 days unless approved by Senior Management at HQ. All travelers requesting an exception must make their requests in writing with a valid reason for the delay.

14.5.1 Lodging – Reimbursable Based

Lodging is defined as room charges and taxes. For reimbursement purposes, a receipt must be provided. These charges cannot include room service fees, upgrade fees, mini bar tabs, entertainment fees, etc. All of these other expenditures must be paid by the traveler using their personal or per diem funds and excluded from their lodging bill.

Partners Guatemala will recognize and reimburse lodging costs based on actual expenses, but the USG ceiling rates shall be a guide to appropriate expenditures per country and must not be exceeded. Exceptions above the maximum rate can be approved by the CFO or CEO. A list of USG guidance is provided below:

- [General Services Administration](#) (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The [Department of Defense](#) (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The [State Department](#) establishes all foreign rates which are specific to major cities.

14.5.2 Rental Cars – Reimbursable Based

The cost of rental cars including rental car insurance is allowed only if the nature of the trip or the location of business to be visited is such, that use of field transport or local transportation is unavailable, impractical or unsafe, as determined by the traveler's supervisor. If deemed necessary and approved as part of the TA process, Partners Guatemala will recognize and reimburse rental car costs based on actual expenses. Prior to reimbursement, the FO Finance Department will need to check that the TA includes an explanation (specific uses) as to why a car rental was necessary.

Note, Partners Guatemala does not carry a blanket collision damage waiver policy nor is the traveler covered with liability insurance if collision with the rental vehicle were to occur. Partners Guatemala recommends the purchase of collision and liability insurance each time a car is rented.

14.5.3 Use of Personal Vehicle – Reimbursable Based

The use of a personal vehicle while on travel within Guatemala is permitted in lieu of airline transportation if approved by the supervisor. The traveler will be reimbursed for gas mileage in accordance with the IRS standard mileage rate. The current mileage reimbursement is USD \$0.575 cent per mile driven for business purposes <https://www.irs.gov/newsroom/irs-issues-standard-mileage-rates-for-2020>.

14.5.4 Tolls, Parking, Etc. – Reimbursable Based

For business travel, if renting a car, using a personal vehicle or using a Partners Guatemala's program vehicle, Partners Guatemala will reimburse based on actual costs for all tolls, parking and other costs associated to the use of the vehicle. These types of expenditures are reimbursed based on actual charges incurred and a receipt must be provided for expenses over USD \$25.

14.5.5 Airfare and Trains – Reimbursable Based

Partners Guatemala will reimburse or purchase on behalf of all approved travelers all necessary airfare and train tickets. For reimbursement purposes, a receipt and boarding pass must be provided for all airfare and train tickets. Please note below the additional restrictions related to airfare purchases.

14.5.5.1 Seat Upgrades

Only coach class or promotional fares will be paid by Partners Guatemala. Business and first class are considered seat upgrades and must follow the below protocol; otherwise, this will not be covered by Partners Guatemala. While seat upgrades are not to be expected, there are some circumstances when the traveler could be authorized to travel Business class:

- When no space is available in coach-class accommodation and the flight must be taken;

- When use of business class is necessary to accommodate traveler disability or a special need; or
- When the cost is the same or the traveler pays for the difference in cost between coach and the upgrade.

With the exception of no-cost upgrades, or the traveler pays for the difference in cost without Partners Guatemala's funding, all seat upgrades will need to be approved in advance with the FO Director and must include a written justification as to why the upgrade is necessary.

14.5.5.2 Fly America Act

All US government-funded travel will comply with [the Fly America Act](#), which requires that all travel and shipments must be made on U.S. flag carriers to the extent services by such carriers is available. Use of a Fly America compliant carrier is required regardless of whether a foreign carrier can provide the service at a comparable or lower cost, or whether a foreign carrier is preferred due to convenience. The rules generally provide for a limited number of exceptions; however, a U.S. carrier must be used for any travel: 1) within the U.S., or 2) between the U.S. and the last destination point that is served by a U.S. carrier for that particular routing. Exceptions to the Fly America Act can only be approved by Partners CFO at HQ. The exceptions are as listed below:

1. If a U.S. flag air carrier offers nonstop or direct service (no aircraft change) from your origin to your destination, you must use the U.S. flag air carrier service unless such use would extend your travel time, including delay at origin, by 24 hours or more.
2. If a U.S. flag air carrier does not offer nonstop or direct service (no aircraft change) between your origin and your destination, you must use a U.S. flag air carrier on every portion of the route where it provides service unless, when compared to using a foreign air carrier, such use would:
 - Increase the number of aircraft changes you must make outside of the U.S. by 2 or more; or
 - Extend your travel time by at least 6 hours or more; or
 - Require a connecting time of 4 hours or more at an overseas interchange point.

For a flight to be in compliance with the Fly America Act, the code of a U.S. flag air carrier must be noted as part of the flight number on the airline ticket, flight coupon (boarding pass), or passenger receipt. Each airline has a two-letter alpha code. From this list, you will be able to compare airline codes on the ticket with those on the list and thereby be able to ascertain whether or not the flight is on a US Flag air carrier. In order to ensure that the flight is Fly America Act compliant all travel should be booked through the designated travel agent/agency.

Many of the U.S. flag air carriers are listed below:

- AirTran Airways (FL)
- Alaska Airlines (AS)
- American Airlines (AA)
- Continental Airlines (CO)
- Delta Airlines (DL)
- Frontier Airlines (F9)
- Hawaiian Airlines (HA)
- JetBlue Airways (B6)
- Midwest Express (YX)
- Southwest Airlines (WN)
- Spirit Airlines (NK)
- United Airlines (UA)
- US Airways (US)

14.5.6 Meals & Incidentals (M&IE) – Per Diem Based

Per diem means the amount of money that Partners Guatemala gives to the employee for an official trip out of his / her office to cover food and other expenses in accordance with current rates. Partners Guatemala includes the cost of all meals and incidentals under a flat rate per diem provided to the traveler and will NOT reimburse based on actual expenditures. Partial per diem will be provided when one or more of the meals is provided by someone other than the traveler.

For the appropriate amount of the per diem, please reference [Section 14.6 Per Diem for M&IE](#) to determine correct per diem based on the traveler type.

14.5.7 All Other Miscellaneous Travel Expenses (MTE) – Reimbursable Based

All other miscellaneous travel expenses (MTE) are additional expenses and paid as necessary and charged to the POA credit card or reimbursed based on the actual costs incurred. All MTE expenses over USD \$25 must be supported by receipts/stubs/invoices as part of the expense report in order to be reimbursed. MTE includes but is not limited to the following:

- All ground transportation fees (buses, taxis, etc.) between place of lodging or business and places off site to obtain meals, meetings, site visits, etc.
- Visas
- Room cleaning cost: Where an apartment is taken in lieu of hotel accommodations, the traveler may contract, however this must come from the incidental travel expense part of the per diem
- Immunizations and medications on travel
- Reproduction of materials
- Telephone calls and other communication costs that are reasonable and necessary for work-related communications
- Bank fees on exchanges currencies
- Purchase of clothing (in the event that baggage is lost, and clothing must be purchased in order to keep with meeting schedules)

14.5.8 Unallowable Expenses and Reimbursement Limitations

Partners Guatemala will not reimburse or cover charges for the below prohibited items. Please note these lists are not inclusive and Partners Guatemala reserves the right to refuse payment of any authorized or expense deemed unallowable.

14.5.8.1 Alcohol Purchases

Alcohol purchases may not be made with Partners Guatemala's funds while on Partners Guatemala travel.

14.5.8.2 Other Unallowable Expenses

Partners Guatemala's unallowable expenses include but are not limited to:

- Additional travel insurance, travel accident insurance or trip cancelation premiums
- Non-essential upgrades or packages
- Additional expenses associated with the cost of first or business class airfare, unless it falls into the exception categories listed above
- Childcare and babysitting expenses
- Costs incurred by your failure to cancel transportation or hotel reservations

- Costs incurred by your spouse or other dependents traveling with you, unless spouse or dependents is also on a Partners assignment
- Gasoline expenses when the automobile mileage reimbursement rate is claimed
- Hair styling and haircut expenses
- Spa, nails or other treatments
- Entertainment or tour expenses, unless activity is required by Partners Guatemala trip
- Kennel/boarding expenses for pets
- Costs incurred for speeding tickets, etc. when renting or driving any vehicle for Partners Guatemala use
- Other expenses not directly related to the business purpose of the travel assignment

For a complete list of unallowable expenses for USG funds, please reference [2 CFR Part 200: Unallowable Costs \(Annex K\)](#) or [OMB Circular A-133](#), which includes any potential exceptions to the above unallowable expenses.

14.6 Per Diem for M&IE

Partners Guatemala has a travel policy that provides a per diem for all expenses related to meals and incidental expenses (M&IE). For the appropriate amount of per diem, please determine the traveler type. All travelers will fall into one of the three categories, as defined in [Section 14.3 Traveler Definitions](#).

14.6.1 M&IE Rates

All Partners Guatemala's M&IE per diem rates are based on a percentage of the government per diems allowed per city and/or country, as defined herein and below. Depending on the destination, travelers should utilize the General Service Administration rates for travel within the continental US, the Department of Defense rates for travel to Alaska, Hawaii, and other US territories, and the State Department for all foreign travel. The websites to obtain the rates are listed below:

- [General Services Administration](#) (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The [Department of Defense](#) (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The [State Department](#) establishes all foreign rates which are specific to major cities.

Per diems are driven based on the approved TA and include any travel outside of HQ or the respective Country Field Office with travel duration of four (4) hours or longer, regardless of the destination or transportation mode. Exceptions to this must be approved by the CEO or CFO.

14.6.2 M&IE Meal Breakdown

M&IE is intended to cover the costs of meals and incidentals during each day of work-related travel. For first and last days of travel (travel days), if the itinerary requires the traveler to start their travel day from their home-of-record (or work-related destination) before breakfast and return to their work-related destination (or home-of-record) after dinner, then the full per diem can be recorded and documented in the expense report. Specifically, if departure from home on first day of travel is before 6AM or arrival to home on last day of travel is after 7PM, then full per diem may be applied for a travel day. Otherwise, travel day rates will be determined as defined in [Section 14.6.4 Per Diem M&IE – Local Field Office Staff](#). The travel day rate utilized should be as follows: On first day of travel, utilize the destination city; on the last day of travel, utilize the departure city. For example, if the traveler leaves home-of-record and travels to San Diego on day one, and returns back home from San Diego on day three, during both travel days, the per diem should be calculated based on the San Diego rate.

If the daily M&IE rate excludes one or more of the meals, these are to be reduced at the following rates:

- Breakfast: 16% of daily calculated M&IE rate
- Lunch: 24% of daily calculated M&IE rate

- Dinner: 40% of daily calculated M&IE rate

Note that incidentals are calculated at 20% of the total daily rate and excluded from these meal rates; i.e., the sum of incidentals and the three meals is equal to 100% of the daily M&IE. See examples in [Annex L](#).

14.6.3 M&IE Allowable Costs

The M&IE portion is intended to substantially cover the costs as described below.

1. The meals allowance portion is intended to include the cost of breakfast, lunch, and dinner while on travel, and is incorporated as part of the per diem.
2. Incidental travel expense portion is intended to include but are not limited to:
 - a. Fees and tips to waiters, porters, baggage handlers, bellhops, hotel servants, dining room stewards, and similar employees
 - b. Laundry, dry cleaning, and pressing of clothing
 - c. Room cleaning tips
 - d. All other incidental travel expenses as defined by Chapter 300, Part 300-3, in the Federal Travel Regulation (www.gsa.gov/fttr), under Per Diem Allowance.

US Based/HQ and local field office staff are not permitted to charge a corporate card for meals covered by their per diem, for themselves or any other individual receiving a Partners Guatemala's per diem. As all Partners Guatemala travelers receive some form of per diem, their costs should be paid for separately with per diem or personal funds. However, if the meal for the group is charged on a corporate card, this meal must be deducted from the daily per diem rate, at the rate defined above (in [Section 14.6.2 M&IE Meal Breakdown](#)) for the specified meal.

If US Based/HQ or local field office staff need to cover the cost for meal invitees (e.g. donors, etc.), they may use a corporate card to pay for the bill; however, they should deduct their meal and the meals of any other Partners Guatemala's per diem recipients from the bill and pay the remaining balance on the corporate card, if possible. Alternatively, they may choose

to deduct the meal from the daily per diem rate received, as per the rate defined above for the specified meal. Similarly, when paying with personal credit card or cash (intending to be reimbursed), the US Based/HQ or local field office staff will only receive reimbursement for the portion of the bill that does not include meals for Partners Guatemala's per diem recipients. If for some reason the bill cannot be split, and there is no other option than to pay on a corporate card, the US Based/HQ or local field office staff member must split out the portion of the bill when coding their credit card statement between personal charges and actual business expenses. The US Based/HQ or local field office staff member will be liable to pay Partners Guatemala back for their part of the meal and for the meals of any other Partners Guatemala per diem recipient charged to their Partners Guatemala's corporate credit card if they received an advance for per diem; otherwise, this should be deducted from the expense report when requesting travel per diem after the trip.

14.6.3.1 M&IE Weekend Travel

Should a traveler remain away from home on business over a weekend, the per diem will be allowed, assuming that the traveler is required to be away from home over the weekend for business purposes.

14.6.4 Per Diem M&IE – Local Field Office Staff

This portion of the per diem policy guidelines applies to all local field office staff, local consultants and all other local travelers based outside of the US. This policy includes the Country Director. For all full days on travel, **Local Field Office staff will receive 35% for all domestic travel and 50% for all international travel**, of the government per diem rate for the particular city (or region for travel where not all specific cities are listed).

On the first and last day of travel, in alignment with the USG guidelines, the maximum M&IE per diem will be based on **26.25% for domestic travel and 37.5% for international travel** of the government per diem rate for the particular city (or region for travel where not all specific cities are listed). See exceptions to this in [Section 14.6.2 M&IE Meal Breakdown](#) above.

If local field office staff are taking personal vacation time either before or after the Partners Guatemala business travel, they will not receive Partners Guatemala per diem those days. The local field office staff will receive the first and last travel day in accordance with the guidelines listed above, as these local field office staff local field office staff would have had to travel to or from the office or place of residency whether or not they were on personal travel after or prior to the trip.

14.6.5 Payment of Per Diems

Regardless of the traveler, per diems will only be paid upon the Finance Office's receipt of an approved TA. The approved TA and itinerary will be the supporting documentation and authorization for the issuance of the per diem. No receipts will be required for per diem payment, except as defined in this policy.

All per diem payments should be made within 30 days from the end date of travel. Partners Guatemala will not accept per diem payment requests made after 60 days unless approved by Partners HQ. All travelers requesting an exception must make their requests for exceptions in writing (e.g. memorandum addressed to the FO Finance Office) with a valid reason for the delay.

It is the traveler's responsibility to utilize their per diem to cover all their meals and incidentals. Unless approved by the CEO, no additional M&IE will be provided. The traveler does not need to reimburse the organization if they do not spend all their daily M&IE.

14.6.5.1 Per Diem Payment for Local Field Office Staff

Local field office staff including the Country Director and all other local travelers outside of the US will be issued their per diem upon submission of the approved travel authorization via the Replicon platform. The per diem request with the attached travel authorization as the supporting documentation will need to be submitted by each employee in Replicon, and then approved by the appropriate supervisor in Replicon. Once completed, this information will be submitted to the FO Finance Department for direct payment into the employee's bank account within 30 days.

14.7 Reimbursement Requests (Non-Per Diem Items)

Allowable expenses that may be submitted for reimbursement as described above (lodging, rental cars, personal vehicles, airfare and trains) are all reasonable costs which are essential and directly related to the objectives of the grant and/or the main purpose of the trip.

14.7.1 Expense Reports for Reimbursement – Local Field Office Staff

No later than 30 days following the final day of a trip as necessary (in which purchases are not made on behalf of the traveler in advance), a reimbursement request should be prepared and submitted to the FO Finance Department. The method for requesting reimbursement for local field office staff will be done via the Replicon application. This report submitted in Replicon should include the following:

- A fully executed Travel Authorization/Travel Itinerary
- Replicon Expense Report which includes all proper documentation and copies of receipts attached for all items over USD \$25.
 - Please note that a bank or credit card statement is not sufficient documentation for a receipt. Where sufficient documentation has not been obtained, an affidavit will need to be filled out confirming the expenses were for business purposes and that the expenses did not include any alcohol. A copy of an appropriate affidavit is found in [Annex M](#).
- Provide evidence of the exchange rate during the period of travel (a hotel or bank receipt showing a conversion of currency may be a convenient way of satisfying this requirement.)
 - The following sites are also recommended to utilize for obtaining the exchange rate:
 - Oanda: <https://www1.oanda.com/currency/converter/>
 - XE: <https://www.xe.com/>

14.8 Personal Travel During Business Trips

If, for personal reasons, the traveler wishes to go to places other than those on the authorized Partners Guatemala itinerary, he/she may book and must pay for those reservations and

additional costs. The traveler should also notify the FO Finance Department in writing that they are booking personal travel/personal portion of the trip. If the personal travel is booked on the same ticket as the Partners Guatemala authorized trip, the traveler will be responsible for covering their personal travel within 30 days of the booking. If the flight cost is a cheaper ticket price including personal days on the beginning or end of the trip, the traveler does not need to reimburse any money. Travelers are only responsible for paying the difference of the ticket price. For example, travel dates for business ticket cost equals \$500, travel dates including a personal portion of the trip equals \$600, the staff must reimburse Partners Guatemala the \$100 difference between business ticket cost and personal portion of the trip. Appropriate documentation showing the additional costs must be kept on file for audit purposes.

14.9 Use of Partners Guatemala's Vehicles

It should be noted that only authorized employees of Partners Guatemala and Partners HQ are eligible to drive company vehicles. "Vehicles" are defined as cars, trucks, motorcycles or any other motorized vehicle owned by Partners Guatemala. Partners Guatemala provides vehicles for business use to allow employees to drive on designated business assignments. All employees using company vehicles must following the below requirements:

- Any driver of Partners Guatemala vehicles must ensure that the equipment does not experience any deterioration either by his/her direct negligence or by the fault of a third party. Therefore, the employee will personally ensure the proper physical maintenance of the vehicle he/she is responsible for by checking the daily cleanliness and routine parameters, which the employee will note before each use.
- Only authorized employees of Partners Guatemala are eligible to drive company vehicles.
- All authorized drivers must be 25 years or older.

- The keys should be held by authorized employees of Partners Guatemala who are eligible to drive company vehicles. When the vehicle is not in use or on business assignment, the keys should be returned to the FO Director.
- All individuals driving Partners Guatemala's vehicles, must always have a valid driver license on them while utilizing the company vehicle.
- Company vehicles are **only** to be used for business travel.
- On occasion supervisors must check the employee's driving record to ensure that the employee's record is clean and without motorized vehicle violations.
- Employees approved to drive on company business are required to inform their supervisor of any changes that may affect either their legal or physical ability to drive.
- Employees holding jobs requiring regular driving for business as an essential job function must, as a condition of employment, be able to meet the driver approval standards of this policy at all times.
- Employees should maintain the security of the vehicle and its contents, including not leaving personal items (including those of any passengers) in the vehicle at any time while unattended.
- Drivers must always drive safely and responsibly and follow all traffic regulations, including the speed limit and pay special attention to pedestrians and cyclists.
- Drivers must be mindful of the weather, and avoid driving during severe weather conditions, when feasible.
- Use of handheld cell phones (including texting) while behind the wheel of a moving vehicle being used on company business is strictly prohibited.
- Employees are responsible for any driving infractions or fines as a result of their driving.
- Nonemployees and nonbusiness passengers (i.e., family and friends) are prohibited from riding in company vehicles.
- Current registration and proof of insurance must be present in vehicle.
- Vehicle doors must be locked when in motion.

- Company vehicles shall always be secured when not in transit by being locked, keys removed, and alarms activated if so equipped.
- Employees must report any accident, theft or malicious damage involving a company vehicle to the FO Director and Partners HQ, regardless of the extent of damage or lack of injuries. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting.
- Employees are expected to cooperate fully with authorities in the event of an accident. However, employees should make no voluntary statement other than in reply to questions of investigating officers.
- Smoking is prohibited in all company vehicles.
- Seatbelts must always be worn by all passengers in the vehicle.
- Employees are not permitted, under any circumstances, to operate a company vehicle with any physical or mental impairment that causes the employee to be unable to drive safely. Furthermore, employees shall not operate any company vehicle while using or consuming alcohol, illegal drugs or prescription medications that may affect their ability to drive.
- The company driver is responsible for ensuring all necessary precautions are always taken to prevent damage and theft of the company vehicle and/or its contents. Whenever an employee leaves a company vehicle, the following must be done:
 - Roll up all windows
 - Lock all doors
 - Do not leave merchandise and equipment in open view inside a car, which may tempt a break-in. Remove all valuable items or lock them inside the trunk and out of sight when the vehicle is left unattended.
- Employees must take precautions to safeguard the vehicle and its contents. To the extent possible, employees must select off street parking, secure parking garages, or a lighted area close to a business or hotel entrance where normal police surveillance or security protection exists. If an employee is keeping a vehicle overnight in

Tegucigalpa and a secure location is not possible, then the employee must return the vehicle to Partners Guatemala's office location.

Any violation of the above requirements will result in disciplinary action, up to and including termination.

14.9.1 Vehicle Driving Restrictions

Any employee who has a "major violation" in the last five years will not be eligible to drive company vehicles, unless special authorization is given by Partners HQ. Major violations include but are not limited to:

- Driving under the influence of drugs/alcohol;
- Failure to report an accident;
- Reckless driving;
- Making a false accident report;
- Driving while license is suspended or revoked; or
- Attempting to evade a police officer.

14.9.2 Vehicle Travel Restrictions

Vehicles within cities must consider the current security situations in the country. It is recommended to check with the FO Director for the restrictions in place and adhered to U.S. Embassy restrictions for travel including restrictions on departure times.

14.9.3 Vehicle Logs

Before each use, employees must complete a basic vehicle check before and update the log. Drivers must confirm that the following parts and components are in good working order: brakes, steering mechanism, horn, windshield wipers/washers, rear-vision mirrors, lights, and tires. Vehicles found to be in an unsafe condition may not be operated for until properly repaired.

After the basic check is completed, employees will need to report any damages and/or issues with the vehicle on the approved tracking sheet. A mileage log must be maintained for each vehicle, identifying the date and purpose of each trip and the beginning and ending odometer readings. Upon finalizing the use of the vehicle at the end of each day, the employee will need

to update the log and report any damages and/or issues with the vehicle. If an employee fails to update the mileage log and perform the vehicle check, they may face disciplinary action.

14.9.4 Reporting Vehicle Accidents

In case of an accident, the employee should take the following steps:

- If anyone is hurt, call for medical assistance;
- Contact the FO Director and Partners HQ immediately;
- Report the incident immediately to the local police and obtain a copy of the police report;
- Get the below information if possible:
 - Nature and extent of the damage to vehicles and other property;
 - Name and address of the legal owner of the other vehicle or vehicles, if any.
 - Name, address, driver's license number, and date of birth of the driver of the other vehicle or vehicles, if any;
 - License number, make and model of the other vehicle or vehicles, if any;
 - Name of the insurance company of any other driver or drivers, policy number and expiration date, and policy holder's name and address;
 - Time, place and date of the accident;
 - Names and addresses of anyone injured and description of injuries; and
 - Names and addresses of any passengers and other witnesses.
- Exchange vehicle identification, insurance company name and policy numbers with the other driver (if applicable);
- Do not admit negligence or liability. Give no information except as required by law enforcement officers;
- Do not attempt settlement, regardless of how minor;
- Take a photograph of the scene of accident;
- Complete the employee accident report found in [Annex G](#).

After the accident, the employee should follow legal guidelines for exchanging information with other drivers and report the accident to local police. Employees cannot guarantee payment to other parties without Partners Guatemala's authorization.

The employee will be responsible for completing the Employee Accident Report Form found in [Annex G](#). Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting. All photos, police reports, employee accident reports, and other information relating to the incident must be retained and a copy sent to Partners HQ. The FO Director will work with Partners HQ to contact the insurance provider and file claim, as necessary.

14.9.5 Vehicle Repairs

For all vehicle repairs, employees must review the warranty on the vehicle when applicable. The warranty must be reviewed to ensure that the repairs are not covered under the existing warranty and/or that the repairs are done at the necessary shop which are authorized outlets for service. Additionally, the driver must check that the original parts of the vehicle are not replaced used parts, a dishonest practice quite common for radiators, batteries, lamps etc. in some places.

14.9.5.1 Normal Vehicle Maintenance

The driver will respect the normal maintenance schedule of the vehicle, usually based on the mileage of the car or the number of months of use if it occurs before. The objective is to maintain company vehicles in a safe and operating condition by using the most economical, reliable, and up-to-date procedures and technologies available, all in accordance with the original manufacturer's recommendations. Employees who are having vehicles serviced for normal maintenance, should follow all necessary procurement standards and recommended maintenance timelines.

14.9.5.2 Major Vehicle Repairs

Major vehicle repairs are those valued at USD \$500 and above. For all major repairs, the employee will be required to obtain three (3) quotes from a pool of qualified service

providers. The FO Director in coordinator with Partners HQ will review the quotes and select the best provider. The overall process and selection of the provider will be documented in accordance with the normal procurement standards in [Section 13](#). If the major repair pertains to an accident report and an insurance claim is filed, then Partners HQ in coordination with the FO Director will work with the insurance agent to cover the cost less any deductible.

14.9.6 Vehicle Insurance and Registration

Under Partners HQ's vehicle insurance policy, it provides protection to authorized drivers of company vehicles while on official business. The insurance policy covers collision, fire, theft and liability and includes a deductible. If the accident is due to driver negligence, the insurance claim may be denied, and Partners Guatemala will be responsible for all costs associated with the incident.

All Partners Guatemala's vehicle must be registered in Guatemala with the appropriate authorities. Any vehicle that is not properly registered cannot be used for business, until the registration is updated. Copies of current vehicle registration information must always be retained in the glovebox of the vehicle, and a second copy filed with the FO Finance Manager.

Annex A

Master Equipment & Supply Listing

[illegible]

Annex B

Petty Cash Count

Partners of the Americas - USAID649 Guatemala Field Office - Petty Cash Count			
Petty Cash Count on		7-Jan-20	
Bank Notes	Q200	GTQ 0.00	
	Q100	GTQ 0.00	
	Q50	GTQ 0.00	
	Q20	GTQ 0.00	
	Q10	GTQ 0.00	
	Q5	GTQ 0.00	
	Q1	GTQ 0.00	
Coins	Coins Total	GTQ 0.00	
	Total Cash On Hand	GTQ 0.00	
<i>By signing below I certify that I have conducted a cash count and verified Petty Cash Float in the presence of the petty cash float holder on:</i>			1/7/2020
Prepared by:	Maria Julia Tahuite Castillo	Signature:	
Title of Preparer:	Administrative Assistant & Accountant	Date:	1/7/2020
Certified by:	José Eduardo Cano Ozaeta	Signature:	
Title of Certifier:	Country Director	Date:	1/7/2020
Remarks:			

Annex C

Field Expenditure Report and Certification

Partners of the Americas - USAID649 Guatemala Field Office												
			Month ending	9/30/2018								
			Country	Guatemala								
Click down list												
Ref or CK#	Payee	*Budget Description	*Activity Code	Amount (Guatemala Quetzal)	Exchange Rate 7.7500	Amount (USD)	*Object Code	Description of Expense	Country	Office	*Subcont. ID	Session C
		Communications	IMM	GTQ 400.00	7.7500	\$ 51.61	7450		GT	O	D	Financial

Partners of the Americas
General Information & Certifications

Name of the Country office	Guatemala Field Office			
Project Code:	USAID649			
Project Name:	John Ogonowsky Farmer to Farmer Program (FTF) 2019-2023			
Project Start Date:	30-Sep-18			
Project End Date:	31-Aug-23			
Report Date:	01-Aug-19			
Total Months for the Project:	60 Months			
Remaining Months for the Project:	50 Months			
Remaining Months for the Project:	83.02%			
Certification of Expenses:				
1. The undersigned hereby certifies (1) the fiscal report & attachments have been prepared from the books & records of the field office in accordance with the terms of the grant award, and to the best of my knowledge and belief, that they are correct, that the sum claimed under this award is proper and that all the costs of the field office performance (except as herewith reported in writing has been accrued or paid or will be paid currently to the award when due in the ordinary course of business.)				
2. That the work reflected by the costs above have been performed, that the quantities and amounts involved are consistent with the requirements of the award.				
3. That all required approvals have been obtained and appropriate refund to Partners of the Americas will be made upon request in the event of disallowance of costs not reimbursable under the term of this award.				
4. By signing this report, I certify that the expenses contained in the present report for month of <u>XXXXXX</u> equivalent to US dollars <u>XXXXXXX</u> were incurred by the field office, and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the USAID Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by USAID, I will provide full cooperation to all the involved parties to complete such review. audit or investigation.				
Name of Certifier:				
Signature:				
Title:				

PARTNERS *of the* **AMERICAS**
Connect • Serve • Change Lives

Month and Year:

Exchange Rate for the Month GTQ to USD

7.75

Balance as end of

Deposits in Transit

Check in Transit

[illegible]

Balance According to the Bank:

August-19

GTQ 0.00

Exchange Rate Applied GTQ to USD

7.75

USD Balance According to the Bank end of:

August-19

\$ -

Balance as Beginning of:

August-19

GTQ 0.00

Deposits for the Month

GTQ 0.00

Check Written in Current Month

GTQ 0.00

GTQ Balance According to the Books end of:

August-19

GTQ 0.00

Exchange Rate Applied GTQ to USD

7.75

USD Balance According to the Books end of:

August-19

\$ -

Difference of Bank and Book Balance as end of:

August-19

\$	-
----	---

By signing this report, I certify that the expenses contained in the present report for month of XXXXXX equivalent to US dollars XXXXXX were incurred by the entity, and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the USAID Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by USAID, I will provide full cooperation to all the involved parties to complete such review, audit or investigation.

Prepared By:

Finance-Administrative Director

Date _____

Approved By:

Project Director

Date _____

Annex D

Cash Flow Request

 PARTNERS of the AMERICAS Connect • Serve • Change Lives						
Partners of the Americas						
CASH FLOW REQUEST for Jan-20						
Office:	Guatemala	Currency:	GTQ	Date Requested:	1/7/2020	
Program/Grant #:	USAID649					
Exchange Rate of GTQ to USD					7.70	
					Amount	
Bank Balance as of 1/7/2020					GTQ	28,989.28
Current Bank Balance in USD					\$	3,764.84
Petty Cash Balance as of 1/7/2020					GTQ	1,500.00
Current Petty Cash in USD					\$	194.81
Last Cash Flow Request in USD					\$	8,575.23
Are these funds in your bank account as 1/7/2020 ?					Yes	
Total Cash on Hand					\$	3,959.65
Projection for Unpaid Obligations this Month in USD					\$	5,291.79
Total Projections for Next Month in USD (Rounded Numbers)					Jan-20	\$ 18,295.15
Local Personnel (Includes Country Director & All Field Staff)					\$	7,520.00
Local Fringe (Includes SS, aguinaldo, Med. Life & Severance)					\$	2,934.11
Local Consultants (Short Term Contracts)					\$	1,948.05
Supplies (All Equipment & Supplies below \$5,000 USD in Value)					\$	389.61
Meetings and Events					\$	90.91
Staff Travel (transportation, hotels, per diems, airfare, etc. when not with FTF Volunteer)					\$	1,540.01
Communication					\$	292.08
Office Rent & Utilities					\$	164.29
Volunteer Travel-Related Costs (Includes cost of local staff travel when on travel with FTF)					\$	3,416.09
Bank Fees & Misc. Service Charges/Interest					\$	-
Total					\$	18,295.15
Necessary Funding for Next Month					\$	19,627.29
Total Cash Flow Request					\$	19,627.29
By signing below I certify that I have conducted a petty cash count and verified that the amount above is accurate and available.						
Prepared by:		Maria Julia Tahuite Castillo		Signature:		
Title of Preparer:		Administrative Assistant & Accountant		Date:		1/7/2020
Certified by:		José Eduardo Cano Ozaeta		Signature:		
Title of Certifier:		Country Director		Date:		1/7/2020

Annex E

Petty Cash Certification

Date

Name of Country Director/Chief of Party

Country Director/Chief of Party

Dear **Name of Country Director/Chief of Party**:

Re: CERTIFICATE OF PETTY CASH FLOAT HELD

TOTAL OF PETTY CASH FLOAT: _____

LESS TOTAL PETTY CASH VOUCHERS: _____

EQUALS TOTAL CASH ON HAND: _____

I certify that I have conducted a cash count on _____ (date) and verified Petty Cash Float in the presence of the petty cash float holder.

PETTY CASH VERIFIER: _____ Name

Signature

PETTY CASH FLOAT HOLDER: _____ Name

Signature

Annex F

Harassment Complaint Form

The information you provide below is considered sensitive and will be shared only with those who are considered essential to the investigation and disposition of this complaint. Do not feel limited by the space provided in this form – you are encouraged to attach additional pages if you believe it will assist in the investigation.

If you are more comfortable with verbally relaying your report, your supervisor or any member of management you've discussed your complaint with can complete the form on your behalf. However, you must sign the last page.

<i>Complainant Name:</i>	
<i>Position:</i>	
<i>Department:</i>	
<i>Supervisor:</i>	
<i>1. Describe the alleged harassment incident(s).</i>	
<i>2. Who was responsible for the alleged harassment incident(s)?</i>	

3. Identify any witnesses to the alleged harassment incident(s).	
4. Where did the alleged harassment incident(s) take place?	
5. List the date(s) and time(s) that the alleged harassment incident(s) occurred.	
6. Have you reported this incident to anyone else? If so, whom?	
Employee Signature	Date
Signature of Person Completing Form (if not employee):	Date
Name of Person Completing Form (if not employee):	

Partners Guatemala is an equal opportunity employer. It is Partners Guatemala's policy that all employees have a right to work in an environment free of discrimination and harassment based on race, color, sex, religion, political opinion, disability, economic situation, national ancestry or social origin or any other basis protected by local law. Partners Guatemala's policy prohibits retaliation against any employee for complaining about discrimination or harassment.

Annex G

Employee Incident Report

A. Injured Employee Data		
Employee Name:	Position:	Full Name of Witness (If applicable):
Work Location:		
Date of Accident	Time of Accident A.M. ☐ P.M. ☐	Claim Number (if known)
Phone:	Other/Cell Number:	Email:
Supervisor		Supervisor Telephone Number

Check all that Apply:

Type of Accident/Loss: () Injury () Vehicle Accident () Illness () Property Damage () Fire

() Other-Specify: _____

Location of Occurrence: () On Premises - Office () Off-Premises

Nature of Injury/Illness: (Strain, Laceration, Burn, Fracture, etc.) _____

Part(s) of Body: (Back, Finger, Hand, Foot, etc.) _____

Date of 1st Medical Treatment: __Time__ AM/PM

Employee Sent: () Back to Work () To Doctor () Home () To Hospital

If applicable: Estimated Time of Disability: _____ Days

For Vehicle Accidents Only

Owner: () Partners Guatemala () Other (Name/Address) _____

License Plate Number: _____ Year: _____

Make/Model: _____

Brief Damage Description:

Repair Hours (Estimated)_____

Estimated Material Costs \$_____

B. Accident Description

Instructions: Obtain written and/or recorded statements from injured employee. What happened? What caused the accident? What were the contributing factors? Reconstruct the sequence of events that led to the injury. Attach additional sheets if necessary. This document becomes an official accounting of the facts surrounding the accident. When documenting the facts, include answers to the following questions:

Where did the accident happen and who was involved? Provide a full description of the surroundings of the location and the individuals involved.

What was happening at the time of the accident and why was it taking place?

What were the events leading up to the accident? Describe the sequence in order and when they took place.

What exactly caused the injury and how did it happen? What were the mechanics, equipment or tools involved?

Describe the injury or injuries incurred. What body part and what kind of injury? (Indicate if no injury occurred.)

If a physical injury was avoided, what could have happened to cause an injury?
7. If damage occurred to employer vehicle, please describe the damage:
8. If damage occurred to employer equipment, please describe the damage:
C. Accident Findings
After review of all facts, what was the hazardous condition, unsafe work practice, or other causal factors (procedure, equipment, people, and environment) that contributed to the accident / injury?

Employee Signature: _____

Date: _____

Witness Signature (If Applicable): _____

Date: _____

Supervisor Signature: _____

Date: _____

Employee Accident Investigation Report

To Be Conducted by FO Director

For all question below please write one of the following: (Y for Yes; N for No; NA for Not Applicable)

I. Environmental Data

Temperature_____

Humidity_____

Weather_____

Wind_____

Visibility_____

Lighting_____

Surface (road, steps, floor, etc.).

Condition (smooth, wet, slippery, etc.)

Type Surface (wood, asphalt, grass, etc.)

Describe Roadway (Curve, uphill, intersection, etc.) _____

Traffic Control Devices (Y/N):

(1) Present_____

(2) Visible_____

For ramps, stairs, steps (Y/N):

(1) Present_____

(2) Obstructions_____

II. Operator/Vehicle (If applicable)

A. Driver Injured_____

B. Passengers Injured _____

C. Others Injured_____

D. Vehicle Damaged_____

F. Other Vehicle Damaged_____

G. Other Property Damaged_____

H. Driver Licensed for Vehicle_____

I. Seat Belts Worn_____

J. Alcohol/Drugs Involved _____

III. Equipment/Training Data

A. Safety Equipment Required_____

B. Safety Equipment Available_____

C. Safety Equipment Used_____

D. Experience a Factor_____

E. Instructions Available_____

F. Instructions Written_____

G. Instructions Adequate_____

H. Alcohol/Drugs a Factor_____

I. Adequate Rest for Use_____

Have similar accident occurred before? _____

How many accidents has this employee had in the past 12 months? _____

Of the above accidents how many were preventable? _____

Once the investigator has completed the questions above and reviewed the incident report, answer the following questions:

In your opinion, what caused the accident?

- | | |
|--------------------------------------|---|
| A. Unsafe Procedure _____ | Was this Preventable _____ or Non-Preventable _____ |
| B. Defective Equipment _____ | Was this Preventable _____ or Non-Preventable _____ |
| C. Horseplay/Misconduct _____ | Was this Preventable _____ or Non-Preventable _____ |
| D. Unauthorized Use _____ | Was this Preventable _____ or Non-Preventable _____ |
| E. Poor Hygiene/Housekeeping _____ | Was this Preventable _____ or Non-Preventable _____ |
| F. Lack of Training/Experience _____ | Was this Preventable _____ or Non-Preventable _____ |

D. Corrective Action
What is recommended to prevent this type of accident from occurring again?
List possible factors based on descriptive narrative and information in preceding data fields:
List causes:
Corrective Action Taken/Planned, with dates:

Use Additional Forms and Paper if Required

Investigated by: _____

Investigator Signature: _____

Date: _____

Reviewed by: _____

Reviewer Signature: _____

Date: _____

Annex H

Application for Employment

EEO Statement: Partners of the Americas is an equal opportunity employer and will not discriminate against any application for employment on the basis of actual or perceived race, color, religion, national origin, religion, sex (including pregnancy, childbirth, and other pregnancy-related conditions), age (18 and over), marital status (including parenthood), personal appearance, sexual orientation, gender identity or expression, family responsibilities, genetic information, disability, veteran status, matriculation, political affiliation or any other basis prohibited by law.

General Information:

Date: _____

Full Name: _____

Current Email Address: _____

Current Address: _____

Day Phone Number: _____ Evening Phone Number: _____

_____	_____	_____	☐ Full-Time
Position Desired	Salary Desired	Earliest Start Date	☐ Part-Time
			☐ Intern

Have you ever applied to Partners of the Americas before? _____

If yes, when: _____

How did you find out about Partners of the Americas? _____

Are you legally permitted to work in this country? ☐ Yes ☐ No

Have you ever been convicted of a crime other than a minor traffic violation? ☐ Yes ☐ No

If yes, give details on a separate page and attach to the application.

Note: A criminal conviction is not an absolute bar to employment but will be considered in relation to specific job requirements.

Education / Training:

High School	City & State	Degree
-------------	--------------	--------

Did you graduate: ☐ No ☐ Yes

College	City & State	Degree
---------	--------------	--------

Did you graduate: ☐ No ☐ Yes

Graduate/Trade School	City & State	Degree
-----------------------	--------------	--------

Did you graduate: ☐ No ☐ Yes

Previous Experience (Start with current or most recent employer):

Firm Name	From (Month/Year) To (Month/Year)	Salary
-----------	-----------------------------------	--------

Address (Street, City, State, Zip)

Job Title	Supervisor's Name	Phone #
-----------	-------------------	---------

Responsibilities: _____

Reason for Leaving: _____

May we contact the above employer? ☐ Yes ☐ No If no, please provide explanation.

Firm Name	From (Month/Year) To (Month/Year)	Salary
-----------	-----------------------------------	--------

Address (Street, City, State, Zip)

Job Title Supervisor's Name Phone #

Responsibilities: _____

Reason for Leaving: _____

May we contact the above employer? ☐ Yes ☐ No If no, please provide explanation.

Firm Name From (Month/Year) To (Month/Year) Salary

Address (Street, City, State, Zip)

Job Title Supervisor's Name Phone #

Responsibilities: _____

Reason for Leaving: _____

May we contact the above employer? ☐ Yes ☐ No If no, please provide explanation.

Additional Qualifications:

Please identify any additional knowledge, skills, qualifications or awards that will be helpful to us in considering your application for employment.

References:

Please provide the names of three professional references, not related to you, who can best provide pertinent information as to your character and capabilities for the position you are applying or being considered for. These individuals are generally your previous supervisors.

Name/Title:

Organization:

Relationship:

Email

Telephone #:

Applicant's Certification:

Applicant's Certification of Truthfulness, Agreement to Background Checks and Understanding of "AT WILL" Employment

I hereby certify that all statements made in this application and in the pre-employment process are true and correct to the best of my knowledge and belief. I understand and agree that any misrepresentation or omission of facts in my application or in the pre-employment process may result in rejection of my application or termination of my employment.

I understand an employee of Partners of the Americas may make an investigation as to my character and general reputation. I authorize all current and past employers, schools, persons and organizations having relevant information or knowledge to provide it to Partners of the Americas for the use in deciding whether or not to offer me employment. I hereby release Partners of the Americas its representatives and all such employers, schools, persons and organizations from all liability in making or responding to inquiries in connection with my application.

Per the Guatemalan Constitution, I understand that partners of the Americas will not use police records and criminal records as a reason to restrict any constitutional right including the right to work the right to work. Furthermore, Partners of the Americas in accordance with the Guatemalan Constitution prohibits any form of discrimination which affects access to work.

I understand that if an employment relationship is established my employment can be terminated at any time, with or without cause or notice, at the option of either Partners of the Americas or myself. I further understand that nothing contained in this application or in any other oral communication or representation from Partners of the Americas or any Partners of the Americas representative made at any time constitutes a contract, guarantee, promise or any other binding obligation on Partners of the Americas.

Further, if granted a position with Partners of the Americas, I will comply with all of Partners of the America's policies and procedures, a copy of which will be provided on or before my first week of employment.

In signing this form, I certify that I understand all the questions and statements in this application.

Acknowledged:

Signature of Applicant

Date

Performance Evaluation Template

EMPLOYEE PERFORMANCE EVALUATION

EMPLOYEE NAME		REVIEWER NAME	
EMPLOYEE TITLE		REVIEWER TITLE	
DATES OF REVIEW	January 1, 2019 - December 31, 2019	TODAY'S DATE	
CHARACTERISTICS			
QUALITY	RATING SCALE	COMMENTS	
Works to Full Potential (not distracted & able to complete quality work)			
Takes Initiative (doesn't wait to be asked to start doing his/her work)			
Time Management (consistently meets deadlines with quality & accuracy)			
Communication (responds promptly & accurately to requests)			
Accountability (follows policies & procedures)			
Financial Management (accurate & responsibly handling funds)			
Coworker Relations (interacting respectfully & in good behavior with staff)			
Attendance & Punctuality (is on time to work - in the field of office, and has excused absences)			
COUNTRY DIRECTOR TECHNICAL ROLE			
Designed well-written country project strategies			
Identifies local host organizations			

Onboards field staff - review Field Office Manual & POA policies		
Ensures project Scopes of Work meet the country's project strategy		
Oversees in-country travel & logistics for volunteers & staff		
Produces comprehensive & well-written content to POA for reports		
Establishes relationships with hosts, partners, & other stakeholders		
Follows POA's instructions and implements updates		
Successfully supervises field staff & keeps them accountable		
Monitors & evaluates the quality & impact of volunteer assignments		
OVERALL SCORE /80		
GOALS FOR NEXT PERIOD		
COMMENTS		
EMPLOYEE SIGNATURE		REVIEWER SIGNATURE

DEFINITION OF RATINGS

EXCEPTIONAL (5): Consistently exceeds all relevant performance standards. Provides leadership, fosters teamwork, is highly productive, innovative, responsive and generates top quality work. Active in industry-related professional and/or community groups.

EXCEEDS EXPECTATIONS (4): Consistently meets and often exceeds all relevant performance standards. Shows initiative and versatility, works collaboratively, has strong technical and interpersonal skills or has achieved significant improvement in these areas.

MEETS EXPECTATIONS (3): Meets all relevant performance standards. Seldom exceeds or falls short of desired results or objectives. Lacks appropriate level of skills or is inexperienced/still learning the scope of the job.

BELOW EXPECTATIONS (2): Sometimes meets the performance standards. Seldom exceeds and often falls short of desired results. Performance has declined significantly, or employee has not sustained adequate improvement, as required since the last performance review or performance improvement plan.

NEEDS IMPROVEMENT (1): Consistently falls short of performance standards.

Salary Increase Form



2020 Salary Increase Form

Salary increases are based on performance and available funds. The supervisor may suggest a salary increase for each employee based on the scale below. If deviating from this scale, an explanation must be included. Salary increases are ultimately at the President's discretion.

- Overall score of 4.5 and above **Exemplary** (4-5% increase)
 - Overall score of 3.5 and above **Solid Performance** (2-3% increase)
 - Overall score of 3.0 and above **Satisfactory** (1-2%)
 - Overall score of 3.0 and below *** Needs Improvement** (0-1% increase)
- *Supervisor must attach list of deficiencies and necessary corrective actions (performance improvement plan).

Employee Name:			
Effective Date of Change:	1/1/2020		
	<i>(Retroactive to this date, if applicable)</i>		
	Current Salary		
	2019 Annual Salary:	\$ -	
	Months Worked in 2019	0.00	\$s needed for formulas \$ -
	Salary Increase		
	*Percentage Increase:	0.00%	\$ -
	<i>AND/OR</i>		
	Flat Increase:	\$ -	
*Based on 2019 Employee Goals & Performance Evaluation			
Reasons for Change		Total Increase:	\$ -
Annual Increase		2020 Salary:	\$ -
Change in Job Description		Per Pay Period:	\$ -
Change in Grant or Unit			
Change in Position			
Other (Please specify)			
Notes <i>(Attach additional memos and/or documentation, if necessary)</i>			
Supervisor Signature	Date: 01/01/2020	Vice President <i>(if applicable)</i>	
Employee Signature	Date 01/01/2020	President Signature	Date 01/01/2020

Risk Assessment Templates

Sub-recipient Monitoring Tool- First Time



PARTNERS of the AMERICAS
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FIRST TIME RISK ASSESSMENT

Sub-Grantee Check List

Name of Project & Grant Number:
Fixed Obligation Grant/Contract:
Cost Reimbursable Grant/Contract:
Staff Name Completing Form:
Date Completed:

Yes or No	Overall Score		
Yes or No	0		
	High Risk	Medium Risk	Low Risk
	361-530	202-360	0-201

Grading Legend:

Low Risk	Medium Risk	High Risk
0-3	4 - 6	7 - 10

No.	Description	Review Areas/ Action Required	Answers to Questions	Rating Risk
1	Organization and Administration			
	1.1 Entity Details and Registration Compliance			
	Is your organization registered in country?	Ex. Registration documents		
	1.2 Business Structure			
	Is your business a LLC, Corporation, Sole-Proprietorship, etc.?			
	Who is ultimately responsible for business liabilities, debts and actions?			
	1.3 Funding			
	In your company's preceding fiscal year, did your company received 50% or more of its annual gross revenues from US federal contracts?			
	Has the organization received during the previous year \$300,000 or more in US Government funds?	Check audit reports		
	1.4 Project Operations			
	Is there an organizational chart? Is it updated?			
	Is staff aware of reporting structures?			
	Is there segregation of duties?			
	Does the organization have an Operations Manual?			
	Are the key elements of an Operations Manual present?	1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Phone/mobile use policy 6) Financial & HR procedures 7) Staffing requirements 8) Archiving policy 9) Procurement procedures 10) Travel Policy 11) Critical success criteria		
	1.5 Safety and Security Plan			
	Is there a Safety and Security Plan on file with up-to-date emergency contact information?			
	1.6 Human Resources and Personnel			
	Are there Personnel Files? Do they have proper backup and filing systems?	Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract? Test: Random check of each personnel file to verify documentation. How are salary distributions made? Are they properly documented?		
	1.7 Finance			
	Do financial systems effectively capture their activities?			
	Are POA project activities reported separately from other activities?			
	Is there a chart of accounts?			
	Is there evidence of proper financial documentation?	Payment ,receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations		
	Does the organization keep a separate bank account for POA/USG funds?			
	What is the company's average monthly expenditure?			
	1.8 Reporting			
	Is there adequate reporting and tracking of funds?			
	Has the organization worked with cost share requirement before?			
	1.9 Staffing/Human Resources			
	Is there a written HR Policy? (includes the signing document of conflict of interest)			
	Is there a clear delineation of roles and responsibilities?	Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management		
	Are employees benefit plans readily available (medical, insurances, allowances, bonus policies etc.)?	Evidence (health plan, workplace insurance, overtime register, training policy, etc.)		
	Are personnel contracts available in hard copy?			
	Are consultant contracts available in hard copy?			
	1.10 Travel			
	Does the organization have its own travel policy?			
	Total score for Organization and Administration			0
				Organization and Administration scoring
				High Risk Medium Risk Low Risk
				175-260 100-174 0-99
2	Risk Management			
	2.1 Anti-corruption / Sanctions Lists / Counter Terrorism			
	Has POA conducted a screening of the organization and people working for a project? Ex. SAM Check, OFAC Check, Compliance Check			
	2.2 Risk Management			
	Is there a Disaster Plan/Contingency?	Filing list, hard and soft copy files, compliance		
				Risk Management Scoring

Sub-recipient Monitoring Tool- Recurring Policy



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REOCCURRING RISK ASSESSMENT Sub-Grantee Monitoring & Evaluation Check List

Name of Project:

Fixed Obligation Grant/Contract:

Cost Reimbursable Grant/Contract:

Staff Name Completing Form:

Date Completed:

Yes or No	Overall Score		
Yes or No	0		
	High Risk	Medium Risk	Low Risk
	556-840	276-555	0-275

Grading Legend:

Low Risk	Medium Risk	High Risk
0-3	4 - 6	7 - 10

No.	Description	Review Areas/ Action Required	Action Required	Rating Risk
1	Organization and Administration			
	1.1 Funding			
	In your company's preceding fiscal year, did your company received 50% or more of its annual gross revenues from US federal contracts?			
	Has the organization received during the previous year \$300,000 or more in US Government funds?	Check audit reports		
	1.2 Project Operations			
	Is there an organizational chart? Is it updated?			
	Is staff aware of reporting structures?			
	Is there segregation of duties?			
	Does the organization have an Operations Manual?			
	Are the key elements of an Operations Manual present?	1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Phone/mobile use policy 6) Financial & HR procedures 7) Staffing requirements 8) Archiving policy 9) Procurement procedures 10) Travel Policy 11) Critical success criteria		
	Is there a vehicle usage log, which is maintained, reviewed and pre-determined based on a schedule? Is there an office policy on vehicle usage?			
	Are fixed assets labeled, marked and entered into a log/register?			
	Are asset registers being updated regularly and checked at least annually?	Spot check assets and asset register/s		
	Are tags/unique identifier numbers assigned to each item?			
	1.3 Safety and Security Plan			
	Is there a Safety and Security Plan on file with up-to-date emergency contact information?			
	1.4 Human Resources and Personnel			
	Are there Personnel Files?	Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract? Test: Random check of each personnel file to verify documentation.		
	Do they have proper backup and filing systems?	How are salary distributions made? Are they properly documented?		
	1.5 Finance			
	Do financial systems effectively capture their activities?			
	Are POA project activities reported separately from other activities?			
	Is there a chart of accounts?			
	Is there evidence of proper financial documentation?	Payment, receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations		
	Does the organization keep a separate bank account for POA/USG funds?			
	What is the company's average monthly expenditure?			
	1.6 Reporting			
	Is there adequate reporting and tracking of funds?			
	Is the organization reporting cost share?			
	Are the items reported as cost share reasonable and allowable?			
	Are the items reported as cost share properly documented?			
	1.7 Project Management			
	Are funding and staffing resource estimates sufficiently detailed and documented for use in planning and tracking the grant?	e.g.: Yearly budgets, Staffing plan		
	Are project deliverables clearly defined and understood by project staff?			
	Are target dates established for each milestone/deliverable?			
	Are project invoices being submitted to POA on time?	Spot check last 3 invoices		
	Is there a document retention policy?			
	1.8 Staffing/Human Resources			
	Is there a written HR Policy? (includes the signing document of conflict of interest)			
	Is there a clear delineation of roles and responsibilities?	Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management		
	Are employees benefit plans readily available (medical, insurances, allowances, bonus policies etc.)?	Evidence (health plan, workplace insurance, overtime register, training policy, etc.)		
	Is there an up-to-date list of project employees?			
	Is there an up-to-date list of project consultants?			
	Are employee salary and consultant payments in accordance with the approved budget?			
	Are personnel contracts available in hard copy?			
	Are consultant contracts available in hard copy?			
	1.9 Travel			
	Is there authorized travel by POA?	Check approved budget and other documentation		
	Does the organization have its own travel policy?			
	Are Travel Expense Reports (TERs) submitted correctly, on time, and with appropriate approvals?	Spot check		
	Is the correct M&IE rate being used?			
	Are itemized receipts attached to the TER?			
	Are only allowable expenses being reimbursed?			
	Are Travel Advances being cleared according to the organization's policy			
	1.10 Conferences			
	Is there proof that funds went to specific conferences cited in deliverables?	Check for participants list, hotel reservations, receipts, and other documentation		
	Total score for Organization and Administration			

Organization and Administration scoring		
High Risk	Medium Risk	Low Risk
291-450	141-290	0-140

2 Risk Management					
	2.1	Anti-corruption / Sanctions Lists / Counter Terrorism			
		Has POA conducted a screening of the organization and people working for a project? Ex. SAM Check, OFAC Check, Compliance Check			
	2.2	Integrity Systems Check			
		Has the Code of Conduct been signed by appropriate staff members?	Ex. Random check 10 personnel files		
		Is the Code of Conduct readily available?			
	2.3	Risk Management			
		Are local contract templates being checked regularly (at least every two years) to make sure they are in line with country workplace laws?	Evidence of local legal advice		
		Are there soft copies of Grant Agreements and Amendments on file?			
		Are there hard copies of Grant Agreements and Amendments on file?	Check hard copies		
		Is there a Project Filing System?	Filing list, hard and soft copy files, compliance with Sharepoint filing system		
				Risk Management Scoring	
				High Risk	Medium Risk
				Low Risk	
		Total score for Management		0	
				47-70	24-46
				0-23	
3 Finance and Procurement					
	3.1	Financial Operations			
		Are there financial management procedures?	Spot check; evidence of FM procedures and use		
		Is the staff aware of the financial management procedures?			
		Do records show correct signatures in line with delegated authority ?	Spot check 10 items		
		Are the expenses reasonable, allowable and allocable?	Spot check 10 items		
		Are financial records being kept in hard copy?	Sight hard copies		
		Are financial records being kept in soft copy?	Check SharePoint or Local Server copies		
		Is the project budget being updated regularly and with reasonable accuracy?	Check latest forecast, date and signature. Should be signed off each month, even if no change.		
		Is there a budget variance greater than 10% per category?			
		Are grant funds routinely requested to meet obligations?			
	3.2	Payroll			
		Is payroll calculated each month?	By whom and how?		
		Are all applicable taxes being withheld?	Ex. Income tax, PAYE		
		Are individual payroll sheets for each staff member available?			
		Do payroll sheets detail other benefits and percentage allocation?			
	3.3	Audit			
		Are annual audits being undertaken either internally or externally?	Annual audit reports		
		Are project audits stipulated per the grant?	Check contract/grant		
		If yes, are they being conducted and findings submitted to POA?			
		Has your company currently or previously been involved in any litigation concerning performance or financial management under United States Government federal award or subaward?			
	3.4	Procurements			
		Are formal procurement policies and procedures in place and being followed?			
		Have all special conditions of the award been met?			
				Finance and Procurement Scoring	
				High Risk	Medium Risk
				Low Risk	
		Total score for Finance and Procurement		0	
				126-190	61-125
				0-60	
4 Technical Capacities					
	4.1	Experience			
		Did the company work under another organization/company?			
		How much money did they spend per year in the implementation of the project (s)?			
		Are the activities of the organization aligned with the mission and the values of the company ?			
	4.2	Leadership			
		During the last year has been a change in leadership?			
	4.3	Personnel and Consultants			
		Is the technical staff of the organization qualified and with enough experience?			
		What is the turnover of the technical staff?			
		Does the organization have a consultant database so they can hire a short-term consultant quickly?			
		Is the project functioning as described in application?			
		Is data provided to support project "goals/outcomes"?			
	4.4	Reporting			
		Have technical reports been submitted timely?			
		Have the reports been accurate? Have there been errors?			
	4.5	Monitoring and Evaluation			
		Does the organization have mechanisms to ensure good quality of the products?			
		Does the staff have access to a database with where they can access and download documents related to their work?			
				Technical Capacities Scoring	
				High Risk	Medium Risk
				Low Risk	
		Total score for Technical Capacities		0	
				91-130	51-90
				0-50	
		Total Score in All Categories		0	

Instructions

- The table at the top of the page shows how each question is score 0-10 for Risk Assessment.
Each question will have a maximum of 10 points for high risk and 0 for low risk.
 - A score between 0-3 shows a low risk for that particular question
 - A score between 4-6 shows a Medium risk for that particular question
 - A score between 7-10 shows a high risk for that particular question
- The total sum of all the questions will determine the overall score for that section (section 1, 2, 3 or 4). The total score in each section and where that number is by analyzing the graphs/boxes (on the right) will determine the level of risk. It is important to notice that each section will have different scores (graphs/boxes on the right) depending on how many questions are being asked.

Annex K

Unallowable Costs

<https://www.govinfo.gov/app/details/CFR-2014-title2-vol1/CFR-2014-title2-vol1-sec200-410/summary>

Annex L

Examples for calculating per diem for HQ staff, note Field Staff have different percentages, however, the calculation is the same.

Notes:

- [General Services Administration](#) (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The [Department of Defense](#) (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The [State Department](#) establishes all foreign rates which are specific to major cities.
- Meal breakdown can be calculated in the following chart (note, for travel funded by USG programs, this table MUST be used): www.gsa.gov/travel/plan-book/per-diem-rates/mie-breakdown

i) Normal example with no exceptions

Traveler A, a staff from the HQ office, leaves for a trip to New York City on Monday morning in April. The flight is scheduled to leave at 9AM. The traveler returns back to home-of-record on Thursday by noon.

The M&IE rate is \$76, as per the GSA website.

The Partners' approved rate is 90% = \$68.4

The per diem received will be:

Monday = $\$68.4 \times 75\% = \51.80

Tuesday = \$68.40

Wednesday = \$68.40

Thursday = $\$68.4 \times 75\% = \51.80

Total per diem = $\$51.80 + \$68.40 + \$68.40 + \$51.80 = \$240.40$

ii) Departing from home early; arriving home late

Traveler B, a staff from the HQ office, leaves for a trip to Bogota, Colombia on Monday morning in April. The flight is scheduled to leave at 8:00AM. In order to catch the flight, Traveler B must leave the home-of-record at 5:30 AM in order to be at the airport two hours prior to departure. The traveler returns back to home-of-record on Thursday at 10PM.

The M&IE rate is \$105, as per the State Department website.

The Partners' approved rate is 90% = \$94.50

The per diem received will be:

Monday = \$94.50 (this is a travel day; however, since Traveler B is leaving the home-of-record before 6AM, as per [Section 14.5.2 M&IE Meal Breakdown](#), full per diem is applied)

Tuesday = \$94.50

Wednesday = \$94.50

Thursday = \$94.50 (this is a travel day; however, since Traveler B is arriving to the home-of-record after 7PM, as per [Section 14.5.2 M&IE Meal Breakdown](#), full per diem is applied)

Total per diem = \$94.50 + \$94.50 + \$94.50 + \$94.50 = \$378

iii) Some meals covered by other sources

Traveler C, a staff from HQ, attends a conference in Panama City, leaving on flight on Monday at 11AM, attending the conference on Tuesday – Thursday, and returning on Friday morning, arriving to home-of-record after 9PM. During the conference, meals are provided for breakfast and lunch.

The Panama City M&IE rate is \$99, as per the State Department website.

The Partners' approved rate is 90% = \$89.10

Meal breakdown is as follows, as per [Section 14.5.2](#):

Breakfast @ the \$89.10 = \$13; Lunch = \$22; Dinner = \$36; Incidentals = \$18 (numbers rounded to nearest dollar)

The per diem received will be:

Monday = \$89.10 * 75% = \$66.83 (Panama City is the destination city and the rate to utilize on this first travel day)

Tuesday = \$36 + \$18 = \$54 (Dinner plus incidentals)

Wednesday = \$36 + \$18 = \$54 (Dinner plus incidentals)

Thursday = \$36 + \$18 = \$54 (Dinner plus incidentals)

Friday = \$89.10 (this is a travel day; however, since Traveler C is arriving to the home-of-record after 7PM, as per [Section 14.5.2 M&IE Meal Breakdown](#), full per diem is applied; also, Panama City is the city of departure; hence, this rate is utilized)

Total per diem = \$66.83 + 54 + 54 + 54 + 89.10 = \$317.93

Annex M



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Affidavit in lieu of Receipt

I certify the following charges are true and correct and made for the business purpose outlined below.

Purpose/Event:

<u>Date</u>	<u>Description</u>	<u>Amount</u>	<u>Payment Method</u>
-------------	--------------------	---------------	-----------------------

Signed,

Name

Date

1424 K Street NW Suite 700 Washington DC 20005 202.628.3300 www.partners.net

Acknowledgment of Receipt and Compliance to Policies

I hereby acknowledge that I have received the Guatemala Supplemental Manual for Personnel and Operations (herein referred to as "MANUAL") for Partners Guatemala. I understand that the purpose of the MANUAL is to acquaint employees with the policies and procedures of Partners Guatemala, and to act as a reference for employees. I understand that the MANUAL reflects the policies and procedures in effect this date which may be changed by Partners Guatemala.

I understand that I am bound by the provisions of this MANUAL and that it is my responsibility to read and adhere to the contents set forth in the MANUAL. Furthermore, I acknowledge these policies and procedures as conditions of employment with the Partners Guatemala. I agree to comply with all policies contained within the MANUAL and to ask my supervisor any questions that I may have about it.

Print Name: _____

Employee Signature: _____ Date: _____